



Republic of the Philippines
SENATE
Pasay City

JOURNAL

SENATE SITTING AS AN
IMPEACHMENT COURT
ON THE IMPEACHMENT TRIAL OF
VICE-PRESIDENT
SARA ZIMMERMAN DUTERTE

IMPEACHMENT TRIAL NO. 4
WEDNESDAY, 8 JULY 2026

PREPARED BY THE
LEGISLATIVE JOURNAL SERVICE
SENATE OF THE PHILIPPINES

IMPEACHMENT TRIAL NO. 4
Wednesday, July 8, 2026

CALL TO ORDER

At 2:00 p.m., Wednesday, July 8, 2026, the Senate President, Hon. Win Gatchalian, with the Senate sitting as an Impeachment Court, called the impeachment trial of Vice President Sara Zimmerman Duterte to order.

PRAYER

Sen. Pia S. Cayetano led the prayer, to wit:

Heavenly Father, we come before You today with a deep sense of responsibility.

We ask for Your wisdom, Lord; the kind of wisdom that seeks only what is true and what is right. As Senator-Judges, may we listen carefully, reason clearly, and decide justly. May we never lose sight of the fact that our role here is not to serve any interest but the interest of the Filipino people and the integrity of our institutions. We pray for fairness in every step of this process. May the truth be heard, may the evidence speak for itself, and may justice, whatever form it takes, be arrived at with honesty and clear conscience.

We also pray for our nation. We know that moments like this can divide us. May this process, difficult as it is, bring us closer to the kind of Philippines we all want to live in—one where no one is above the law and where every Filipino can trust that justice is real.

In Your word, Book of Timothy 2:1-2, Timothy urges the people to pray, petition, and intercede for their leaders. We are a prayerful nation, O Lord, please hear our prayers.

In Jesus' Name. Amen.

ROLL CALL

Upon direction of the Senate President, the Clerk of Court, Atty. Renato N. Bantug Jr., called the roll, to which the following senator-judges responded:

Aquino, B.	Legarda, L.
Cayetano, A. P. S.	Padilla, R.
Cayetano, P. S.	Pangilinan, F. N.
Ejercito, J. V.	Sotto III, V. C.
Escudero, F. G.	Tulfo, E. T.
Gatchalian, W. T.	Tulfo, R. T.
Go, C. L. T.	Villanueva, J.
Hontiveros, R.	Villar, C. A.
Lacson, P. M.	Villar, M. A.
Lapid, M. M.	Zubiri, J. M. F.



With 20 senators present, the Chair declared the presence of a quorum.

Senator-Judge Marcos was also present.

Senator-Judges Estrada and Marcoleta were under detention and unable to attend.

Senator-Judge Dela Rosa was absent.

PROCLAMATION OF THE SERGEANT-AT-ARMS

The Sergeant-at-Arms, PMGen Alfred S. Corpus, commanded all persons, on pain of penalty, to keep silent while the Senate is sitting for the trial of the Articles of Impeachment against Vice President Duterte.

APPROVAL OF THE JOURNAL

Upon motion of the Presiding Officer, Sen. Francis "Chiz" G. Escudero, there being no objection, the Body dispensed with the reading of the *Journal* of the Senate sitting as an Impeachment Court on July 7, 2026 and considered the same as approved.

CALLING OF THE CASE

Upon direction of the Presiding Officer, the Clerk of Court, Atty. Renato N. Bantug Jr., called Case No. 004-2026, entitled "*In the Matter of the Impeachment Trial of Vice President Sara Zimmerman Duterte.*"

APPEARANCES

The Presiding Officer directed the parties to enter their appearances.

For the prosecution, Prosecutor Gerville Luistro entered the appearances previously entered, on behalf of the prosecution.

For the Respondent, Atty. Sheila Sison entered the same appearances.

PRESENTATION OF WITNESS

Presiding Officer Escudero directed the Clerk of Court to call in Agent John Mark Calilung of the National Bureau of Investigation (NBI) to continue his testimony from the previous day's proceedings.

It was noted for the record that Atty. Amando Virgil D. Ligutan appeared as counsel for the prosecution, while Atty. Carlo Joaquin Narvasa appeared as counsel for the respondent.

ORDER OF THE PRESIDING OFFICER

Presiding Officer Escudero recalled that, during the previous day's proceedings, Attorney Ligutan delivered a statement in response to a question from a Senator-Judge, prompting Senator-Judge Cayetano (P) to move that the remarks be stricken from the record.

The Presiding Officer observed, however, that since the proceedings were televised, striking the remarks from the transcript would serve no practical purpose. Accordingly, in the interest of fairness, he directed that respondent's counsel, Atty. Narvasa, be given an equivalent

opportunity of four minutes and 26 seconds to make a statement after the completion of the cross-examination.

The Chair further directed that similar perorations by counsel would no longer be permitted in future proceedings and reminded the Senator-Judges to allow witnesses, rather than counsel, to present the evidence.

REMARKS OF SENATOR-JUDGE CAYETANO (A)

Senator-Judge Cayetano (A) commended the Presiding Officer for his prudence in handling the matter and emphasized that Senator-Judges should refrain from asking questions that could prejudice the proceedings. He agreed that striking the prosecution's earlier remarks from the record would serve little purpose since the proceedings had already been televised.

He maintained that the Respondent's counsel should be afforded the same opportunity previously extended to the prosecution, with reasonable latitude to address both the question raised and matters relating to its affirmative defenses.

WITHDRAWAL OF PREVIOUS MOTION AND REMARKS OF SENATOR-JUDGE CAYETANO (P)

Senator-Judge Cayetano (P) withdrew her previous motion, agreeing with the Presiding Officer's ruling. She underscored the importance of strict adherence to the *Rules*, stating that orderly proceedings depend on their consistent application. She explained that raising procedural objections and calling the attention of the Presiding Officer whenever the *Rules* appear to have been violated are necessary to uphold due process and ensure the proper administration of justice.

REMARKS OF THE PRESIDING OFFICER

Presiding Officer Escudero acknowledged the remarks of Senator-Judge Cayetano (P) and issued procedural reminders to ensure the orderly conduct of the proceedings.

He announced that a 15-minute recess would be called midway through the hearing to allow the parties to relax, go over their notes and also to allow Senator-Judges and counsel who were not actively participating to briefly leave the Session Hall in a non-disruptive manner. He likewise reminded the Senator-Judges to keep their conversations at a low volume to avoid distracting others.

REMINDER OF THE PRESIDING OFFICER

Before the proceedings resumed, Presiding Officer Escudero reminded Agent Calilung that his testimony and cross-examination would continue under the oath previously administered.

CROSS-EXAMINATION BY THE COUNSEL FOR THE RESPONDENT

Thereupon, the Presiding Officer allowed Attorney Narvasa (C) to cross-examine the witness, to wit:

The Presiding Officer. Thank you.

Counsel for respondent, Atty. Narvasa, if you're ready, you may proceed with your cross-examination.

Mr. Narvasa (C). Your Honor, may I be allowed to approach the witness?



The Presiding Officer. You may do so, Counsel.

Mr. Narvasa (C). Thank you, Your Honor.

Good afternoon, Mr. Calilung.

Mr. Calilung. Good afternoon, Sir.

Mr. Narvasa (C). During your direct examination, you testified that you were trained in photo and video authentication.

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). You said that you were trained for two weeks.

Mr. Calilung. Specific for photo and video, Sir.

Mr. Narvasa (C). Sir, my questions are answerable by a 'yes' or a 'no.'

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). Can you please constrain yourself to these questions unless I tell you, all right?

Mr. Ligutan. Objection to that, Your Honor, please.

Mr. Narvasa (C). And you got this training from....

Mr. Ligutan. Your Honor, objection to that.

The Presiding Officer. Before Counsel for respondent proceeds, Counsel for the prosecution, let the Presiding Officer to recognize you first.

Mr. Ligutan. Thank you.

The Presiding Officer. You are so recognized, Sir. What is your objection?

Mr. Ligutan. Thank you so much.

In as much as I would like to accommodate the defense that in asking the question that the witness is to be limited to a 'yes' or 'no' question, Your Honor, please. Unfortunately, Your Honor, please, that is not sanctioned in the *Rules*. There is nothing in our rules that would allow a defense to constrain a witness, even on cross-examination, to answer the questions with a 'yes' or 'no' answer. It is not in the rules.

So, Your Honor, please, we cannot constrain a witness to answering a 'yes' or a 'no.' The witness should be able to qualify. The usual answer by the defense is that it could be handled by the prosecution on redirect, but that is not the case, Your Honor, please. So long as there is nothing in the *Rules* that would allow the defense to constrain the witness to answer 'yes' or 'no,' the prosecution will vehemently object to that, Your Honor, please.

Mr. Narvasa (C). May I, Your Honor?

The Presiding Officer. The Presiding Officer overrules the objection.

The counsel for prosecutors can make a continuing objection regarding this matter. But it is the position of the Presiding Officer that the witness is seasoned enough. According to his testimony yesterday, he has attended over—if I recall correctly—30 hearings already. So, he would know how to respond and to explain if the need would arise. And it is up for counsel for the respondent, if at all, to strike out whatever answers that are not responsive to his question.

Counsel for respondent, may proceed.

Mr. Narvasa (C). Thank you, Your Honor.

Mr. Ligutan. We would abide. Your Honor. We would abide.

The Presiding Officer. Thank you, Counsel for the prosecutors.

Mr. Narvasa (C). And you testified that you got this training from MaxCor Inter-Ventures, correct?

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). And you said that the training you got from MaxCor Inter-Ventures was in digital forensics?

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). I have with me an Article of Partnership of MaxCor Inter-Ventures, Co.. Do you see that it states that it is the Articles of Partnership of MaxCor Inter-Ventures Co.?

Mr. Ligutan. Your Honor, may we allow Atty. Stephen Magallon to also approach the witness stand to peruse the document?

And, of course, at this juncture, Your Honor, please, I have to object.

Mr. Narvasa (C). I have no question yet, Your Honor.

Mr. Ligutan. I am objecting to the witness being shown an Articles of Partnership, your Honor, please.

Anyway, since the question has not been asked, I will....

The Presiding Officer. Let us wait for the question, Counsel.

In the meantime, the Presiding Officer allows Counsel for the prosecutors to examine the document being presented to the witness.

Mr. Narvasa (C). And, Your Honor, for the reference of the senators, we are flashing this Articles of Partnership on the screens.

Sir, please take a look at page 2 of these Articles. Let us read it together, all right? Primary purpose: to engage in the business of trading both import and export of goods on wholesale retail basis. Do you see that, Sir?

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). Now, on the very same page 2, the secondary purpose. Let us read it together again: "own, use, improve, develop, subdivide, sell, exchange, lease of all kinds including buildings, houses, apartments, and other structures." Do you see that, Sir?

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). After that, in the same page 2, the second secondary purpose is to "print, publish, distribute, buy, sell, acquire rights, to and generally deal in all kinds of software packages, books, periodicals, newspapers, magazines, journals, and other publications dealing in or having to do with subjects of all kinds, character, and all acts of things as may time to time be deemed needful, necessary, or required." Do you see that, Sir?

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). Thank you, Sir.

Now I am showing you a screenshot of the website of this MaxCor Inter-Ventures, Co. It states under "About us"—I am also flashing this on the screen, Your Honor, for the ease of the senator-judges.

Mr. Ligutan. Your Honor, at this juncture, the prosecution will now manifest that there was no question propounded as to the presentation of the Articles of Partnership. And the counsel is now moving forward to the presentation of an alleged website.

Therefore, it seems that the defense counsel is the one presenting the documents without propounding any question to this witness; highly improper, Your Honor, please; highly improper.

The Counsel should be asking question and not presenting document. You will have your turn when the defense team is allowed to present your evidence.

Two documents, no question yet. Highly improper, Your Honor, please. Again, I do not want to put the lawyer on the spot, but that is highly improper.

Ask questions.



Mr. Narvasa (C). Your Honor, I did ask questions.

Mr. Ligutan. No, there was no question.

Mr. Narvasa (C). Can we ask that the transcript be read back?

The Presiding Officer. Counsel, kindly proceed.

Mr. Narvasa (C). Thank you, Your Honor.

The Presiding Officer. Counsel for the prosecutors, with the understanding that Mr. Calilung is not testifying as to the truth of whatever counsel asked him or what he read because, clearly, he is not competent to testify as to the truth of what is contained in the articles of partnership. However, as to the fact that he read it and saw it, up to that extent, and the Senator-Judges are so advised as well. So, ordered.

You may proceed, Sir.

Mr. Narvasa (C). Thank you, Sir. And I am on cross here, Your Honor. Thank you.

Sir, under the words "About Us," it says "MaxCor Inter-Ventures has been established as a one-stop source of different products and services intended for both government and private institutions. Its company tagline, "Innovation without Boundaries," stands true testament to provide customers with quality merchandise: from the simplest to the most sophisticated ones at very affordable prices. The Company places a long-term business relationship through customer satisfaction on top of its priority list. With integrity and honesty as the foundation of the company, it envisions to evolve into excellence amidst the competitive pace of information technology." Do you see that, Sir?

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). Sir, now I am showing you another screenshot of the website of this MaxCor Inter-Ventures, Co. You confirm that—I am also flashing this for the ease of the Court. Sir—

Mr. Ligutan. At this point, Your Honor, please allow—the prosecution is allowed—

The Presiding Officer. Counsel for the prosecutor is recognized.

Mr. Ligutan. Your Honor, not by way of an objection but a manifestation, Your Honor, please.

Mr. Narvasa (C). Your Honor, this is—

Mr. Ligutan. Wait, wait, wait, wait. I am not done.

Mr. Narvasa (C). Before that, I would like to object to your manifestation.

Your Honor, there is no objection. Why is the prosecutor allowed to manifest during my cross-examination?

The Presiding Officer. Counsel for respondent, kindly wait for the Presiding Officer to recognize you.

Mr. Narvasa (C). Thank you, Your Honor.

The Presiding Officer. What is the desire of the counsel for the prosecutors? To make a—

Mr. Ligutan. I would like to put into record the simple fact, Your Honor, please, that basis has not yet been laid as to the presentation of these documents. He presented an article of partnership and screenshots of websites without saying who took these screenshots or from where the defense got the articles of partnership. That is only by way of manifestation. No need for the court to rule on that, Your Honor. please.

The Presiding Officer. Noted. Earlier ruling of the Presiding Officer stands. Counsel may proceed.

Mr. Narvasa (C). Your Honor, may I respond?

The Presiding Officer. No need, Counsel. It was not an objection. Please proceed with your cross.

Mr. Narvasa (C). Thank you, Your Honor. May I also state a manifestation, Your Honor? Your Honor, the basis of the defense was laid—

The Presiding Officer. For the record, the Chair will allow it just this one, please.

Mr. Narvasa (C). The basis of the defense was laid when we asked him whether he testified that he got his training as an expert witness from MaxCor Inter-Ventures. That is basic, Your Honor.

The Presiding Officer. Counsel, please proceed.

Mr. Narvasa (C). Thank you, Your Honor.

Sir, could you take a look at this? Under the words "Our Products," the products seen there are "Office Supplies and Equipment," "ICT Equipment (Software and Hardware)," "Investigative Equipment (Hardware and Software)," "Emergency Response Software and CCTVs." Do you see that?

Mr. Calilung. Yes.

Mr. Narvasa (C). Thank you. Mr. Calilung, are you a lawyer?

Mr. Calilung. No, Sir.

Mr. Narvasa (C). Yesterday, you testified that you signed the affidavit of investigation dated February 10, 2025.

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). Your Honor, may I request a copy from the prosecution? I think it is Exhibit P-IV-3 in series.

The Presiding Officer. "P-IV-"...

Mr. Narvasa (C). "3" series.

Mr. Ligutan. Your Honor, please. Manifestation: The witness, number one, mentioned the affidavit of investigation, but the witness did not identify the documents. So, for the record, Your Honor, please, that document is not yet presented in Court as a documentary evidence, Your Honor, please. So, highly improper for the defense to elicit that document through this witness, precisely because this witness did not yet identify the affidavit of investigation, Your Honor, please.

The Presiding Officer. Which exhibit is this? I believe he did, Counsel, but which exhibit is this?

Mr. Narvasa (C). Exhibit P-IV-3 to Exhibit P-IV-3bb, Your Honor.

Mr. Ligutan. Your Honor, please, if I may. It was not yet identified, but it is pre-marked, Your Honor, please, to be presented by our next witness, Atty. Jeremy Lotoc. So, highly improper, inasmuch as we want to accommodate the defense—

The Presiding Officer. So, who is the signatory in that document? Is it—

Mr. Narvasa (C). Your Honor, Mr. Calilung is a signatory to that document.

The Presiding Officer. Is one of the signatories.

Mr. Ligutan. Yes.

The Presiding Officer. Is one of the signatories. But the counsel for prosecutors is correct. This document has not yet been identified by any of the witnesses for the counsel for the prosecutors. You will get your chance, counsel for the respondent, when Attorney Lotoc testifies later, which I believe this is the only exhibit that he will be testifying to.

Mr. Narvasa (C). All right. Your Honor.

The Presiding Officer. Kindly proceed, Counsel.

Mr. Narvasa (C). You mentioned a—affidavit of investigation, correct?

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). And this affidavit of investigation, you sent a copy to the House of Representatives' Committee on Justice?

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). You identified it during the House Committee hearings on April 29, 2025?

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). I am showing you now an affidavit of investigation. This is marked as Exhibit D-IV-46 and series, Your Honor.

The Presiding Officer. "D-IV-46" and series. Is there a counterpart marking from the counsel for prosecutors?

Mr. Narvasa (C). Yes, Your Honor. This is "P-IV-3" to P-IV-3bb."

The Presiding Officer. Thank you. For the record.

Mr. Narvasa (C). This affidavit of investigation has appendages, correct— Annexes?

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). And it forms a whole, correct?

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). Okay. Sir, do you confirm that you signed this?

Mr. Calilung. I am one of the signatories, Sir.

Mr. Narvasa (C). Your Honor, do you have—here, Sir. *Kaso lang*, Sir, *iyong sinabmit* (submit) *mo po*—I withdraw, Your Honor.

Apart from this affidavit of investigation dated February 10, are you aware if there is another affidavit of investigation executed by the NBI represented by the Cybercrime Division in relation to this case?

Mr. Calilung. This is the only one that is submitted, Sir.

Mr. Narvasa (C). No. Executed. Signed.

Mr. Ligutan. Your Honor—

Mr. Narvasa (C). My question is executed.

Mr. Ligutan. —the defense cannot argue with the witness. Your Honor, please.

The Presiding Officer. The witness would know how to respond. Counsel, if he is not responsive to your question, do not argue with the witness. Can you rephrase?

Mr. Narvasa (C). Yes, Your Honor.

Apart from this affidavit of investigation, are you aware if there is any other affidavit of investigation signed by the NBI represented by the Cybercrime Division?

Mr. Ligutan. Okay. At that juncture, I have to object. Vague, Your Honor. Affidavit of investigation signed by the NBI, there could be thousands of documents.

Mr. Narvasa (C). Related to this case, Your Honor.

The Presiding Officer. If the witness knows, witness may answer. Is there any other affidavit of investigation executed by the NBI Cybercrime in relation to this case, witness?

Mr. Calilung. As far as I remember, Sir, this is the final affidavit of investigation, Sir.

Mr. Narvasa (C). Final affidavit. Are you sure, agent? Let me remind you that you are under oath.

Mr. Calilung. Yes, Sir.



Mr. Narvasa (C). I have with me a certification—a DOJ certification executed by Jayvee Lawrence B. Bandong—Senior Assistant State Prosecutor Jayvee Bandong.

For the record, Your Honor, this is Exhibit D-IV-29 for the defense.

Do you see this, Sir?

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). This certification, dated February 5, 2025, states, and I quote: “The referral—The complaint/referral does not contain all the necessary evidence to prove the essential elements of the crime. Therefore, it is recommended that the same be first *referred for case build-up*.” Do you see that?

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). Now, below that, in the second page, under the word “NOTES:” number 1, therefore, states and I quote that, “There is no—” may I have this flashed on the screen, please? For the ease of the Court so the Honorable Court can follow me.

Under “NOTES:” again, Sir—for the record, Your Honor, we are flashing the certification on the screen. Under “NOTES:” Sir, number 1, therefore, states and I quote: “There is no affidavit of the person/s who recorded the video entitled “*VP November 23, PressCon at Batasan*” through Open Broadcast Software (OBS) and in turn, stored it in a digital video disc (DVD).” Do you see that, Sir?

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). Let’s go to page 2. On paragraph 7, it states, and I quote, “One of the elements of the crime of Grave Threats is that the offender threatens another with the infliction upon the latter’s person, honor, or property or upon that of the latter’s family of any wrong amounting to any crime. In the instant complaint, only the NBI executed an affidavit and there was no participation on the part of the offended parties. As it appears, NBI is not the offended party for the crime of Grave Threats.” Do you see that?

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). Above this, in paragraph 6, it states that, and I quote: “Only the minutes of the meeting with several personalities and representative from various media outfits were submitted. Although the minutes were signed, there was no individual affidavit executed regarding the contents of said minutes.” Do you see that, Sir?

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). On paragraph 5, it states that, and I quote: “The affidavit of one Patria Morales mentioned that she stored these footages in a USB and submitted it to the NBI. However, there was no USB attached to the complaint. (only a DVD was attached - there was no detail regarding the contents of this DVD).” Do you see that, Sir?

Mr. Calilung. Yes.

Mr. Narvasa (C). On paragraph 4, it states, and I quote: “Annex L did not indicate who made such TSN. There was also no affidavit of the person who made the TSN.” Do you see that?

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). On paragraph 3, it states that, and I quote: “Annexes I and K (DVDs with markings NBI-CNN-C-24-12436-2 and NBI-CCN-C-24-12436-2) were not accompanied by an affidavit of the record and TSN (also affidavit of the one who will execute the TSN).”

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). On paragraph 2, it states, and I quote: “The press briefing conducted on October 18 was not recorded and/or stored in a DVD (no video submitted) and there was no TSN of the said briefing and the necessary affidavit of the person taking the TSN.”

Mr. Calilung. Yes, Sir.



Mr. Narvasa (C). Now, is your memory refreshed, Sir? Did the DOJ send back the original affidavit of investigation to the NBI?

Mr. Calilung. Yes, Sir, as far as—

Mr. Narvasa (C). Thank you.

Now, you are aware that on February 11, 2025, the NBI, through its then- Director, retired Judge Jaime B. Santiago, wrote to the Office of the Prosecutor General, submitting a revised affidavit of investigation.

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). This is your affidavit of investigation dated February 10, 2025.

Mr. Ligutan. Wait, wait, wait, wait. So, objection, Your Honor. The—

The Presiding Officer. Counsel for the prosecutor.

Mr. Ligutan. The defense said that this is your affidavit dated February 10 without showing any document to the witness. How could a witness answer to a question that he is not—that is not accompanied with a document? That should be the basis for the question and the answer, Your Honors.

Mr. Narvasa (C). I will reform, Your Honor.

The Presiding Officer. Kindly reform, Counsel.

Mr. Narvasa (C). Thank you, Your Honor.

This is your affidavit dated February 10, 2024, correct? Please check.

Mr. Calilung. *(The witness perusing the document.)*

Mr. Ligutan. Your Honor, can I make a manifestation, Your Honor, please?

Mr. Narvasa (C). I have to object again to this manifestation.

Mr. Ligutan. Manifestation. I will not even object. I'm being generous, Your Honor.

The Presiding Officer. Counsel, let's wait for the witness to review it. It's a voluminous document. The signature is on the last page. You can make the corresponding objection to the style, manner of cross-examination of the counsel for respondent at the proper time.

Mr. Narvasa (C). *Iyan po.*

Is this the amended affidavit of investigation?

Mr. Calilung. This is a photocopy of the—

Mr. Narvasa (C). Yes, Sir.

Mr. Calilung. —of the affidavit, Sir.

Mr. Narvasa (C). This is the amended one.

Mr. Calilung. Yes, Sir. The photocopy, Sir.

Mr. Narvasa (C). Thank you.

The Presiding Officer. With the permission of counsel, Mr. Calilung, what was the date of the first affidavit you submitted that was returned by the DOJ to the NBI?

Mr. Calilung. As far as I remember, January 30. And when the certification was issued, we complied with the requirements and submitted it on February 10. That's why—

The Presiding Officer. Have you identified that affidavit of investigation dated January 30 in yesterday's proceedings? Yes or no?

Mr. Calilung. Sir?

The Presiding Officer. Have you identified the January 30?

Mr. Calilung. The one that I identified, Your Honor, is the authentication, Your Honor.

The Presiding Officer. Not the affidavit of investigation. So you have not done so?

Mr. Calilung. Yes, Sir.

The Presiding Officer. This one you have not done so, too?

Mr. Calilung. Yes, Your Honor.

The Presiding Officer. For the record.

Counsel may proceed.

Mr. Narvasa (C). I am showing you now a letter dated January 30 from the former NBI director, Jaime Santiago.

Mr. Ligutan. Now, I have to object, Your Honor, please. You know, the defense has been confronting this witness with documents even without marking and identifying the source of these documents. It is like plucking out of thin air a document, presenting them—the document to the witness, and withdrawing the document.

Mr. Narvasa (C). Your Honor, that's up to the—

Mr. Ligutan. Without even introducing these pieces of evidence—this piece of exhibits into evidence. So, my question is, through the Presiding Officer, is the defense not entering these documents into evidence, Your Honor, please?

The Presiding Officer. They can do so at the proper time, Counsel. But, in so far as the witness is concerned, I think the basis was laid when he said that he executed only one affidavit of investigation in connection with this case. Now it seems that there are two affidavits.

Mr. Ligutan. I would like to make a—

The Presiding Officer. Both of which have not yet been presented. One will be presented I think by Atty. Lotoc. The first one, we're not aware of it.

Mr. Narvasa (C). Your Honor, for the record—

The Presiding Officer. Is that correct, Counsel for the respondent?

Mr. Narvasa (C). Your Honor, he just identified a copy of the affidavit of investigation.

The Presiding Officer. Dated June—January 30?

Mr. Narvasa (C). February—April 10, 2025, Your Honor.

The Presiding Officer. February.

Mr. Narvasa (C). Sorry, Your Honor, February 10.

Mr. Ligutan. February 10, 2025, Your Honor, please.

The Presiding Officer. What about the first affidavit? The witness said he had a first affidavit.

Mr. Narvasa (C). Yes, Your Honor. Not yet.

The Presiding Officer. Not yet.

Mr. Narvasa (C). Yes.

The Presiding Officer. You only cited a January 30 letter?

Mr. Narvasa (C). Yes, Your Honor.

The Presiding Officer. For former NBI—

Mr. Narvasa (C). I cited. Your Honor, certification by the DOJ returning an affidavit.

Mr. Ligutan. And that is now the problem, Your Honor. In fact, even I am confused because the documents are not introduced into evidence by the defense.

The Presiding Officer. Counsel, please. Please proceed and kindly help the Court to be clarified regarding this matter.

Mr. Narvasa (C). Thank you.

You mentioned that you—you mentioned that—that you were aware that the then director-retired Judge B. Santiago wrote to the Office of the Prosecutor General submitting a revised affidavit of investigation on February 11, 2025. I'm showing you now that letter dated February 11, 2025.

For the record, this is Exhibit D-IV-43.

Mr. Ligutan. Of—

Mr. Narvasa (C). For the defense.

Mr. Ligutan. For the defense. You mean, pre-marked?

Mr. Narvasa (C). Yes, Sir.

Mr. Ligutan. I oppose. Because when you say "marked as evidence for defense" it's not yet. That's—your turn has, I mean, you have yet to present your exhibit so it should be pre-marked, Your Honor, please.

The Presiding Officer. No, it's pre-marked and I believe both the defense and the—rather the respondent and the prosecution also have common pieces of evidence which should be cited during pre-trial. This is not one of them. Which you have cited during pre-trial to be marked separately.

Mr. Ligutan. It is one of those few common pieces of evidence.

The Presiding Officer. Yes, there are a few.

Mr. Narvasa (C). Sir.

The Presiding Officer. Please proceed, Counsel for the respondent.

Witness may answer.

Mr. Narvasa (C). There is a signature above the name Judge Jaime B. Santiago, whose signature is that?

Mr. Ligutan. Your Honor, now I would like to object to the relevance. A witness is being confronted with a letter coming from the former NBI-director, Judge Jaime B. Santiago, and this witness is now being asked to identify whose signature is that. That's obvious.

The Presiding Officer. I'll allow it conditionally if you can show the relevance—

Mr. Narvasa (C). Your Honor—

The Presiding Officer. —insofar as your ability to test the credibility and the accuracy of the witness is concerned. In the meantime, I'll allow it. Can you show the connection, Counsel.

Mr. Narvasa (C). Thank you.

Sir, whose signature is this?

Mr. Calilung. As far as I remember, that is the signature of Director Santiago.

Mr. Narvasa (C). Thank you.

Mr. Narvasa (C). On the last line of the letter, on the fourth page, Sir. Please take a look. Last line. It says, and I quote, "To support our recommendations attached herein is the Revised Affidavit of Investigation, including its attachments." Did you see that, agent?

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). Thank you.

And you confirm that the November—the former NBI-Director Jaime Santiago wrote to the Prosecutor General Richard Anthony D. Fadullon a letter dated February—January 30, 2025. This is one of the documents that you submitted to the Committee on Justice, correct?



Mr. Calilung. Where's—

Mr. Narvasa (C). Okay. I will show you now.

May I have this flashed on the screen?

Do you recall this document?

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). Yes.

January 30, 2025 is a date earlier than February 10, 2025, correct?

Mr. Calilung. Yes.

Mr. Ligutan. Your Honor—

Mr. Narvasa (C). Has been answered, Your Honor.

The Presiding Officer. Counsel for the prosecutor?

Mr. Ligutan. Your Honor, the witness being asked which date came first?

Mr. Narvasa (C). Your Honor, it has been answered.

Mr. Ligutan. I mean, relevance, Your Honor. Relevance.

The Presiding Officer. Counsel, if the witness knows and the counsel for the respondent will be given a latitude to test the credibility, accuracy, and completeness of the testimony of the witness but we note your continuing objections because you already sound frustrated, Counsel, in regard to this line of questioning by the counsel for the respondent.

Mr. Ligutan. I am very patient, Your Honor, please. I am very patient.

The Presiding Officer. Counsel for respondent may proceed. Witness may answer.

Mr. Narvasa (C). He already answered, Your Honor. Thank you.

You earlier confirmed there was actually a certification dated February 5, 2025. You likewise—

Mr. Ligutan. Objection, objection. The question is misleading. I don't remember—

Mr. Narvasa (C). I have no question, Your Honor.

Mr. Ligutan. —that the witness stated that there was—

The Presiding Officer. Let the counsel finish with his question, Counsel.

Mr. Narvasa (C). He even read it, Your Honor.

You likewise confirmed that in that said certification, dated February 5, 2025, the earlier affidavit of investigation were subject to seven recommendations, and you confirmed that you read that.

Mr. Ligutan. Objection. Misleading, Your Honor, please.

The Presiding Officer. Counsel for the prosecution.

Mr. Ligutan. Now, the counsel mentioned seven grounds—seven grounds. And I don't remember this witness uttering the term "seven grounds". What I do remember, Your Honor, please is that this witness was confronted with a certification, a letter, whatever but now the counsel is now asking this witness to confirm the contents—the contents—of those certification or letters. Misleading. That is not allowed during cross. The counsel is now assuming facts that have yet to be established. Can I repeat that? This witness was only confronted with certification, letters, dated this, dated that. And now, the counsel is now asking—

Mr. Narvasa (C). Your Honor, he has now testified—

Mr. Ligutan. Wait. Let me finish.

Now he is asking that this witness has to confirm that in that letter there are seven grounds. As if this witness uttered those words. The ground is misleading. Definition. This counsel is assuming facts that have yet to be established through this witness, Your Honor, please.

The Presiding Officer. Counsel, again, the witness is not a newbie. I think he can handle himself and would know how to answer if indeed he is unfamiliar or not with what is being presented to him and thus far he has responded based on his knowledge of these documents.

The Chair will allow it.

Witness may answer.

Mr. Narvasa (C). Thank you, Your Honor.

Sir.

The Presiding Officer. Can you repeat the question, Counsel.

Mr. Narvasa (C). You confirm that there was a certification dated February 5, 2025. You likewise confirmed that in said certification—

Mr. Ligutan. Your Honor, Your Honor, compound question. Compound question.

Mr. Narvasa (C). There is no question.

The Presiding Officer. Kindly wait for the presiding officer to recognize you before answering.

Mr. Narvasa (C). Yes, Your Honor.

Please, Counsel for the prosecutor, finish your question.

Mr. Ligutan. Thank you so much.

Can I?

The Presiding Officer. Yes. Please proceed, Counsel.

Mr. Ligutan. Your Honor, compound questions. The witness is now being confronted with two successive questions without allowing this witness to answer the first question. What makes a compound question—

The Presiding Officer. No need to lecture, Counsel.

Counsel for respondent, please reform.

Mr. Narvasa (C). Your Honor, I have no question. He already. I have no question yet.

The Presiding Officer. Kindly, kindly proceed with your question.

Mr. Narvasa (C). Thank you, Your Honor.

The earlier affidavit of investigation was subject to seven recommendations from the DOJ.

Mr. Ligutan. Vague, Your Honor, please. The question is vague. The earlier investigation—which investigation the counsel is referring to? Objection, vague.

Mr. Narvasa (C). We already established, Your Honor, there was earlier one.

The Presiding Officer. Overruled, overruled. The witness is confident enough to testify. Overruled. Witness—kindly proceed with your question, Counsel.

Mr. Narvasa (C). Yes. In the revised affidavit of investigation dated February 10, 2025 that you identified, despite DOJ's recommendation No. 6 that you earlier read—

Mr. Ligutan. Objection. Your Honor. Objection.

Mr. Narvasa (C). Your Honor, I am not yet done.

The Presiding Officer. Can we wait for the counsel to finish with this question. Counsel, please.

Mr. Ligutan. Okay, Your Honor.

Mr. Narvasa (C). Sir, there was still no affidavits of the journalists from the media outlets in your affidavit of investigation dated February 10.

Mr. Ligutan. Witness. not answer first.

Objection, Your Honor, please. Misleading.

The Presiding Officer. Why is it misleading, Counsel?

Mr. Ligutan. The counsel said the earlier affidavit of investigation. In fact, Your Honor, please, he referred to the February 10 investigation. That is not the earlier investigation, that is the final Affidavit of Investigation submitted to the DOJ.

Misleading, Your Honor.

Mr. Narvasa (C). Your Honor.

The Presiding Officer. The Presiding Officer will ask the question.

Mr. Witness, you attach the affidavits of the two witnesses that viewed the video of the Vice President in the February 10 affidavit.

Mr. Calilung. Yes, Sir. Let me qualify my answer in number 6, Sir.

The Presiding Officer. You may do so.

Mr. Calilung. In number 6, Sir, the DOJ requested an affidavit to be executed regarding the contents of the minutes. I executed an affidavit attesting to those minutes, which I am part of the interview, Sir.

The Presiding Officer. But was it attached to the February 10 affidavit?

Mr. Calilung. Yes, Sir.

The Presiding Officer. Counsel for the respondent, your witness.

Mr. Narvasa (C). Thank you.

Sir, but there are no affidavits of the journalists from the media outlets, correct? My question is not found there, Your Honor.

Mr. Ligutan. Your Honor, please.

Mr. Narvasa (C). My question is not found there.

Mr. Ligutan. Okay, wait, wait, wait.

The counsel is confronting the witness with a document and he propounded a question. And then he asked another question and he took the document away. What is the purpose of that?

Objection, Your Honor, please.

Mr. Narvasa (C). My question is plain, Your Honor.

Mr. Ligutan. Let the witness peruse the document you presented him with. Let him answer that through the document.

Mr. Narvasa (C). My question is plain, Your Honor.

Mr. Ligutan. Your Honor, a witness should be allowed to peruse the document that he was confronted with.

Mr. Narvasa (C). I am not—

The Presiding Officer. Counsel, please, please.

I think the witness understood the question. Mr. Calilung, you may answer if you understand the question.

Mr. Narvasa (C). I will repeat the question, Your Honor.

The Presiding Officer. Kindly repeat, Counsel.

Mr. Narvasa (C). Thank you, Your Honor.

There is still no affidavits of the journalists from media outlets appended on your revised Affidavit of Investigation, Sir?

Mr. Calilung. May I qualify my answer, Sir?

Mr. Narvasa (C). No, Sir. Just answer a 'yes' or 'no.'

The Presiding Officer. Kindly look at the document presented to you. On redirect, counsel can make you explain the disparity appended.

The question is simple. Are the affidavits attached to the Affidavit of Investigation?

Mr. Calilung. May I see the question number 6?

Mr. Narvasa (C). Your Honor, my question does not relate to question number 6.

The Presiding Officer. Kindly show the witness, Counsel, to enable him to give an intelligent answer.

Mr. Narvasa (C). Can we please flash the certification and put it to paragraph number 6?

Mr. Calilung. The paragraph number 6 states that: "Only the minutes of meeting with several personalities and representatives from various media outfits were submitted. Although the minutes were signed, there were no individual affidavits executed regarding the content of the minutes."

Mr. Narvasa (C). Okay, Sir. I have no question.

The Presiding Officer. So, the answer is, the affidavits are not attached.

Mr. Calilung. I have executed an affidavit, Sir.

The Presiding Officer. No, the affidavits of the two journalists are not attached. I think that is the only question of counsel for the respondent.

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). Thank you, Your Honor.

Instead, Sir, as you confirmed, what you appended to the Affidavit of Investigation are affidavits of NBI agents, correct?

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). Not the journalists who were present during the November 23, 2024 press conference.

Mr. Calilung. The one who interviewed, Sir.

Mr. Narvasa (C). Yes, the one who interviewed, not the journalists.

Mr. Calilung. Yes, Sir.

Mr. Ligutan. Asked and answered, Your Honor.

The Presiding Officer. Move forward, Counsel.

Mr. Narvasa (C). Sir, in the revised Affidavit of Investigation dated February 10, 2025 that you identified, despite DOJ's recommendation number 7—can we show again DOJ recommendation number 7? In the certification dated February 5, 2025, it is still the NBI Cybercrime Division that is the complainant?

Mr. Calilung. I believe this is answered on the letter of the director, Sir.

Mr. Narvasa (C). Sir, my, my answer is answerable by yes or no. That the complainant is still the NBI Cybercrime Division.

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). Thank you.

Mr. Narvasa (C). The supposed offended parties in this case would be President Bongbong Marcos?

Mr. Calilung. Yes, Sir.



Mr. Narvasa (C). The First Lady Liza Marcos?

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). The former Speaker of the House Martin Romualdez?

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). Did President Marcos appear before the NBI during its investigation?

Mr. Calilung. No, Sir.

Mr. Narvasa (C). Did the First Lady Liza Marcos appear before the NBI during its investigation?

Mr. Calilung. No, Sir.

Mr. Narvasa (C). Did the former Speaker Martin Romualdez appear before the NBI during its investigation?

Mr. Calilung. No, Sir.

Mr. Narvasa (C). Sir, I am showing you again, for the record, the Affidavit of Investigation. Sir, did you attach to that Affidavit of Investigation dated February 10, 2025, an affidavit of the President Marcos?

Mr. Calilung. Only the responses, Sir.

Mr. Narvasa (C). Sir, listen to my question.

Mr. Ligutan. That is the answer.

Mr. Narvasa (C). Your Honor, he did not answer. So, I am entitled to ask him.

Mr. Ligutan. That is his answer, "responses."

The Presiding Officer. Not responsive. The question was, "Mr. Witness, did you attach the affidavit of President Marcos to the February 10 affidavit?"

Mr. Calilung. No, Sir.

Mr. Narvasa (C). Did you attach an affidavit of the First Lady Liza Marcos on your affidavit?

Mr. Calilung. No, Sir.

Mr. Narvasa (C). Did you attach an affidavit of former Speaker Martin Romualdez on your affidavit of investigation?

Mr. Calilung. No, Sir.

Mr. Narvasa (C). To your knowledge, if you know, Sir, did President Marcos file any criminal complaint against Vice President Sara Duterte as a result of the November 23, 2024 online press conference?

Mr. Calilung. He made a statement, Sir?

Mr. Narvasa (C). No, Sir. My question is, if you know, did the President file any criminal complaint against the Vice President?

Mr. Calilung. I have no personal knowledge, Sir.

Mr. Narvasa (C). Did the First Lady Liza Araneta Marcos file any criminal complaint against VP Sara?

Mr. Calilung. I have no personal knowledge, Sir.

Mr. Narvasa (C). How about Speaker of Martin Romualdez? Did he file any criminal complaint against VP Sara as a result of the November 23, 2024 online press conference?

Mr. Calilung. I have no personal knowledge, Sir.

Mr. Narvasa (C). Did you really investigate this case?

Mr. Ligutan. Your Honor.

Mr. Narvasa (C). Withdrawn, Your Honor.

Mr. Ligutan. Argumentative. Did you really investigate this?

The Presiding Officer. Question has been withdrawn.

Mr. Narvasa (C). In other words, Sir, the alleged offended parties were not included as complainants in the case you filed with the Department of Justice?

Mr. Calilung. Yes, Sir.

Mr. Narvasa (C). Thank you.

And despite the fact that the NBI Cybercrime Division did not comply with recommendations number 6 and number 7 in the Certification dated February 5, 2026, it nevertheless filed the revised Affidavit of Investigation dated February 10, 2025 that you identified today?

Mr. Calilung. Can I qualify my answer, Sir?

Mr. Narvasa (C). No, Sir. Just answer with a yes or no.

The Presiding Officer. Witness may be allowed to answer according to how he wishes to explain.

You may proceed, Mr. Witness, to answer.

Mr. Calilung. Yes, sir. Thank you, Your Honor.

For this case po, we complied with the requirements of the DOJ. That's why we secured a second certification wherein our documents are enough for preliminary investigation, sir.

Mr. Narvasa (C). Okay. Thank you.

And this certification is a certification dated February 5, 2025, correct?

The Presiding Officer. Kindly show the witness the document—

Mr. Calilung. This is not the new certification, sir.

Mr. Narvasa (C). Oh, sorry, sir. Apologies, Your Honor. February 11?

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). This was also executed by Senior Assistant State Prosecutor Jayvee Laurence B. Bandong, correct?

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). Now, let's discuss the nature of the investigation you conducted. You claimed in your affidavit, sir, that affidavit of investigation, that the NBI began its investigation into the VP's remarks because it was directed by the DOJ to do so?

Mr. Calilung. *Motu proprio* and directed, sir.

Mr. Narvasa (C). Okay. Do you understand what you just said, sir?

Mr. Calilung. Yes, sir.

Mr. Ligutan. Can I object to that, Your Honor, please? That's argumentative.

Mr. Narvasa (C). Makes sense, Your—

The Presiding Officer. Argumentative, counsel. Move on.

Mr. Narvasa (C). *Motu proprio*, sir, means—

Mr. Ligutan. No. Objection. You cannot lecture, counsel. This is cross-examination.

Mr. Narvasa (C). So, what does *motu*—you mentioned *motu proprio*. What does it mean?

Mr. Calilung. Even without a complainant, we started the investigation, sir.



Mr. Narvasa (C). Are you sure, sir?

Mr. Ligutan. Oh, argumentative. Are you sure, sir?

The Presiding Officer. Move on, counsel.

Mr. Narvasa (C). How about direct investigation? What does that mean?

Mr. Ligutan. Your Honor—okay, never mind.

Mr. Narvasa (C). Directed investigation: What does that mean?

Mr. Calilung. There is an instruction from above, sir.

Mr. Narvasa (C). From?

Mr. Calilung. Above. From upper.

Mr. Narvasa (C). What does above mean?

Mr. Calilung. It may be the DOJ or the higher.

Mr. Narvasa (C). Higher. What's higher than the DOJ?

Mr. Calilung. Based on that, it's only the DOJ, sir.

Mr. Narvasa (C). You said above the DOJ, sir?

Mr. Calilung. No, sir. Above the NBI, sir.

Mr. Narvasa (C). Sir, you said above—may I ask for a reading?

Mr. Ligutan. Argumentative, Your Honor.

The Presiding Officer. Counsel, again, I would have to sustain the objection. It is argumentative. I heard the answer, and he meant as a general term "above," but referring apparently to only the DOJ in this particular instance.

Mr. Narvasa (C). We submit, Your Honor.

The Presiding Officer. Please proceed.

Mr. Narvasa (C). You confirmed that the NBI Cybercrime Division is the complainant in the case against the Vice-President, and that the DOJ filed this with the—the NBI filed this with the DOJ.

Mr. Ligutan. Objection, compound, Your Honor.

Mr. Narvasa (C). No question, Your Honor. That was just a statement.

The Presiding Officer. Counsel, can you wait—

Mr. Ligutan. Oh, exactly. Your Honor, a statement—

The Presiding Officer. —Stay in the basis for a question. Lead—go to your question, counsel.

Mr. Narvasa (C). Sir, the NBI—of course you're from the NBI—is under the Department of Justice?

Mr. Calilung. Yes, sir.

Mr. Ligutan. Your Honor, we can take judicial notice of that. We can—

Mr. Narvasa (C). Your Honor, if—I'm on cross, Your Honor.

Mr. Ligutan. I know, but there are things that need not be discussed.

Mr. Narvasa (C). No, Your Honor, please.

The Presiding Officer. Counsel, let's give him some latitude. Although we can—

Mr. Ligutan. Much obliged, Your Honor.

The Presiding Officer. Although we can take judicial notice of that, it's part of his cross-examination.

Mr. Narvasa (C). Yes. Thank you, Your Honor.

The Secretary of Justice is, meanwhile, the head of the DOJ, correct?

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). The Secretary of Justice exercises control and supervision over the NBI?

Mr. Calilung. Yes, but even—

Mr. Narvasa (C). No. No more questions.

Mr. Ligutan. Your Honor, the witness is answering—

The Presiding Officer. Mr. Witness, if you know.

Mr. Calilung. Can you repeat, sir?

The Presiding Officer. Mr. Witness?

Mr. Narvasa (C). The Secretary of Justice exercises control and supervision over the NBI, yes, or no?

Mr. Calilung. We are under, sir. But we're independent.

Mr. Narvasa (C). So, you do not know.

Mr. Ligutan. Your Honor, that's argumentative. You do not know.

Mr. Narvasa (C). All right, Your Honor.

Are you aware of Book 4, Chapter 8, Supervision and Control of the Admin Code—

Mr. Ligutan. Your Honor—

Mr. Narvasa (C). Section 39—

Mr. Ligutan. Your Honor—

Mr. Narvasa (C). I have no question yet, please.

Mr. Ligutan. Yeah.

Mr. Narvasa (C). Section 39—

The Presiding Officer. Counsel for the prosecutor, let the counsel for the respondent finish his question.

Mr. Ligutan. Yes, Your Honor.

Mr. Narvasa (C). Section 39 thereof, Secretary's Authority. The Secretary shall have the supervision and control over the bureaus, offices, and agencies under him. Supervision and control.

Sir, my question is this: Is the NBI, the National Bureau of Investigation, a bureau under the Department of Justice?

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). Thank you.

And, sir, the President has control over all Executive departments, correct?

Mr. Calilung. I believe so, sir.

Mr. Narvasa (C). The DOJ is one of those Executive departments, correct?

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). And the current President is Ferdinand Marcos Jr., correct?

Mr. Ligutan. We agree to that. That's judicial notice.

Mr. Narvasa (C). Your Honor, please, yes or no?

Mr. Calilung. Yes po.



Mr. Ligutan. There's no other President. We only have one President.

Mr. Narvasa (C). He answered already, Your Honor.

The Presiding Officer. Already asked and answered.

Mr. Narvasa (C). The head of the Executive branch is President Ferdinand Marcos Jr., correct?

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). The very same Ferdinand Marcos Jr. who you said was an offended party in the case against Vice-President Duterte?

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). So, in other words, the NBI investigated and filed the complaint, the DOJ directed the investigation and will determine whether the case should proceed to court, and the alleged offended party, President Marcos, is the constitutional head of the Executive Branch—

Mr. Ligutan. Objection—

Mr. Narvasa (C). —exercising control over both the DOJ and the NBI—

Mr. Ligutan. Objection—

Mr. Narvasa (C). I withdraw.

Mr. Ligutan. Objection based on the ground, it's—

Mr. Narvasa (C). I withdraw.

Mr. Ligutan. Oh, Your Honor, it's even more compound question asking several separate—

Mr. Narvasa (C). Withdrawn.

The Presiding Officer. Counsel, move on.

Mr. Narvasa (C). Sir, you testified earlier that you investigated the Vice- President in relation to the press briefing that she conducted on November 23, 2024.

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). This investigation by the NBI Cybercrime Division was started after the conduct of the November 23, 2024, press briefing of the Vice- President, correct?

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). So, basically, to put it simply, the investigation was done after the supposed incident on November 23, 2024?

Mr. Calilung. The same day, sir.

Mr. Narvasa (C). The same day, but after?

Mr. Ligutan. Your Honor, "the same day" then "after."

Not responsive.

The Presiding Officer. Counsel, clarify your question.

Mr. Narvasa (C). The investigation was done after, later than, the supposed incident on November 23, 2024?

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). Thank you.

The Presiding Officer. You mean to say, "later that day."

Mr. Calilung. Yes, Your Honor.

The Presiding Officer. Because how can you investigate something that hasn't happened yet?

Mr. Narvasa (C). Correct, Your Honor.

Mr. Calilung. Yes, Your Honor.

The Presiding Officer. Please proceed.

Mr. Narvasa (C). Sir, you're not one of the participants of the press conference on November 23, 2025, correct?

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). So, you do not have personal knowledge about what transpired during that press briefing, correct?

Mr. Calilung. It was live-streamed, sir.

Mr. Narvasa (C). You did not watch that livestream, correct? In real time.

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). You only acquired knowledge about it when you started investigating later that day?

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). You also do not have personal knowledge of the alleged threats made by the Vice President during that press conference—press briefing, sorry?

Mr. Calilung. After the press briefing, sir.

Mr. Narvasa (C). You only acquired knowledge about it when you started investigating?

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). You also do not have personal knowledge of the alleged assassin that was allegedly hired by the Vice-President?

Mr. Calilung. It came to my knowledge upon—

Mr. Narvasa (C). Personal knowledge, sir?

Mr. Calilung. No, sir.

Mr. Narvasa (C). Now, during your testimony yesterday, you mentioned that during your investigation on the November 23, 2024 press briefing conducted by the Vice-President, you preserved a copy of said press briefing through open-source investigation, correct?

Mr. Calilung. Preserved a copy through open broadcast software studio, sir.

Mr. Narvasa (C). Okay. Thank you for that correction.

One of the videos that you were able to preserve in relation to your investigation is the screen recording of the November 23, 2024 press briefing conducted by the Vice-President, right?

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). Your Honor, may I move that the very same USB be unsealed and shown the—by the—prosecutor's Exhibit P-IV-10 be unsealed and shown the witness.

The Presiding Officer. Counsel for the prosecutor, so instructed.

Mr. Narvasa (C). Thank you, Your Honor.

This is Exhibit P-IV-10. I believe.

Your Honor, may I request that he unseal the USB and that it be allowed to be played?

The Presiding Officer. Which part, counsel?

Mr. Narvasa (C). Your Honor, we will play various parts of the—not the whole, for the—as the—

The Presiding Officer. That's what I was worried about.

Mr. Narvasa (C). Yes, Your Honor. We understood by the faces of the honorable members of the court.

The Presiding Officer. So, you will—

Mr. Narvasa (C). We will just—

The Presiding Officer. —play parts of it.

Mr. Narvasa (C). Yes, Your Honor.

The Presiding Officer. And you identified, I presume, the timestamp.

Mr. Narvasa (C). Yes, we have, Your Honor. I will get to that.

The Presiding Officer. Witness may open the seal.

Mr. Narvasa (C). Thank you, Your Honor.

The Presiding Officer. And counsel for the prosecutor is instructed to accompany counsel, one of the counsels for the respondent, in the tech booth to make sure that it's the same USB being presented.

Mr. Narvasa (C). For the record, Your Honor, the witness is opening the prosecution's Exhibit P-IV-10, Your Honor. This is the video dated November 23, 2024.

Mr. Calilung. I have unsealed the flash drive, sir.

Mr. Narvasa (C). Thank you.

The Presiding Officer. Counsel, this with understanding, okay, very much like yesterday, that this USB will again be sealed and signed by both parties.

Mr. Narvasa (C). Yes, Your Honor.

Your Honor, may I request that this be played?

The Presiding Officer. Counsel for the prosecutors, kindly accompany a representative from the counsel of the respondent to the tech booth to make sure that it's the same USB to be played. Kindly just guide us through, counsel, Attorney Narvasa, as regards the time stamps.

Mr. Narvasa (C). Thank you, Your Honor. I will.

The Presiding Officer. Please don't forget your promise that it's not going to be the whole two hours.

Mr. Narvasa (C). Yes, Your Honor.

REQUEST OF SENATOR-JUDGE CAYETANO (P)

Senator-Judge Cayetano (P) requested that the Clerk of Court install a TV monitor in front of the senator-judges, explaining that the current setup made it physically uncomfortable and difficult to view the TV monitors, adding that she and the other judges seated in the front row would also benefit from additional TV monitors, particularly in viewing documentary exhibits, such as affidavits.

The Presiding Officer then directed the Clerk of Court to install a television monitor in front of the counsels' tables, positioned to face the Senator-Judges..

Thereafter, the Presiding Officer reiterated his instruction to Attorney Narvasa (C), to identify for the record and for reference, the specific time stamp of each video to be played, with the understanding that the presentation would proceed in chronological order.

CROSS-EXAMINATION BY THE DEFENSE*(Continuation)*

Mr. Narvasa (C). Your Honor, for the record, we are showing the witness a part of the video marked as the prosecution's Exhibit P-IV-10. First video, the time stamp around 00:01:27 to 00:02:20 of the November 23, 2023 press briefing as contained in the video that you identified yesterday, sir.

Your Honor, may we ask that the video be played at those specific time stamps?

[Audio Video Presentation]

Mr. Narvasa (C). Your Honor, may I ask that the video be stopped?

Sir, do you know who that is in the screen that—in the video that you identified?

Mr. Calilung. Attorney Zuleika, as far as I remember, sir.

Mr. Narvasa (C). And Attorney Zuleika, as far as you remember—Attorney Zuleika—is who in relation to the Vice-President? You may answer not a yes or no question.

Mr. Calilung. As far as I remember, she is the COS.

Mr. Narvasa (C). COS, meaning chief of staff, right?

Mr. Calilung. Chief of staff.

Mr. Narvasa (C). And she is there, in that video, because she was cited in contempt by the House of Representatives, correct? If you are aware. You're the investigator.

Mr. Calilung. Prior to the—

Mr. Narvasa (C). Sir, my question again—

Mr. Ligutan. The witness is about to answer.

The Presiding Officer. Let the witness answer; the witness is in the process of answering.

Mr. Calilung. Prior to the scene, I have no personal knowledge, but based on her statement during the video, it was—I think it was mentioned.

Mr. Narvasa (C). So, you didn't investigate the things that happened prior to the scene, correct?

Mr. Calilung. We have—

Mr. Narvasa (C). Yes or no.

Mr. Calilung. We have investigated, sir.

Mr. Narvasa (C). You didn't investigate?

Mr. Ligutan. Argumentative.

Mr. Calilung. I did, sir. That's why there's an October 18, sir.

Mr. Narvasa (C). So, what happened before that? If you investigated, what happened?

Mr. Calilung. I only say I don't have personal knowledge, sir, because I'm not present during that time, sir.

The Presiding Officer. Witness is not responsive. The question was: What happened prior to this video, this particular clip of the video, if you know, given that you investigated the incident, as you said?

Mr. Calilung. As far as I remember, there is a hearing in the House of Representatives.

Mr. Narvasa (C). What committee, sir?

Mr. Calilung. I can't remember the committee, sir.

Mr. Narvasa (C). What happened, sir?

Mr. Calilung. COS was cited in contempt, sir.

Mr. Narvasa (C). By who, sir?

Mr. Calilung. I can't remember the exact, sir.

Mr. Narvasa (C). But you investigated—I withdraw, Your Honor.

Can we play—let me show you time stamps around 00:28:32 to 00:29:33. This is the same prosecution's Exhibit P-IV-10. That is the video you identified yesterday.

Your Honor, may we request that that video be played?

[Audio Video Presentation]

Mr. Narvasa (C). Stop, please.

Sir, did you consider this in making your evaluation in the Revised Affidavit of Investigation dated February 10, 2025?

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). Thank you.

Now, let me show you time stamps around 00:33:05 to 00:34:32 of the November 23, 2023 press briefing, as contained in the video that you identified yesterday, the prosecution's Exhibit P-IV-10.

Your Honor, may we request that the video be played?

[Audio Video Presentation]

Mr. Narvasa (C). Stop.

Thank you.

Sir, did you investigate the threats to Attorney Zuleika's life?

Mr. Calilung. We need a complaint for this one, that's why—

Mr. Narvasa (C). Yes or no, sir. Did you investigate?

Mr. Calilung. We did not, because there's a lot of—there's no complaint.

Mr. Narvasa (C). You did not. Okay.

Thank you.

Mr. Calilung. The *motu prop*—

Mr. Narvasa (C). No question, sir.

Mr. Ligutan. If the witness may be allowed to answer, Your Honor.

Mr. Narvasa (C). I had no question.

The Presiding Officer. Already answered.

Mr. Narvasa (C). Did you consider this part in making your evaluation in the revised affidavit?

Mr. Ligutan. Asked and answered: he said yes earlier.

Mr. Narvasa (C). This is a different part, Your Honor. This is a different part.

The Presiding Officer. That is a different part. The witness may answer.

Mr. Narvasa (C). Did you consider this part in your evaluation in the Revised Affidavit of Investigation dated February 10, 2025?

Mr. Calilung. Yes, sir.



Mr. Narvasa (C). Okay. So, despite considering these parts of the/ aforesaid/ videos, the NBI still recommended the filing of complaints for grave threats and inciting to sedition only against the Vice President. Yes?

Mr. Calilung. May I qualify my answer, sir?

Mr. Narvasa (C). No, sir. Yes or no.

Mr. Calilung. There is a reason why I...

Mr. Narvasa (C). Sir, your Counsel may ask you questions. This is my turn.

The Presiding Officer. Proper subject matter for redirect.

Mr. Narvasa (C). So, despite considering these parts of the videos shown to you, the NBI still recommended the filing of complaints for grave threats and inciting to sedition against only the Vice-President.

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). Now, in the revised Affidavit of Investigation dated February 10, 2025, on page 15, paragraph 40 thereof, it is stated there, and I quote: "We unanimously believe that Vice-President Duterte may be held liable for Grave Threats defined and penalized under Article 282 of the Revised Penal Code, and Inciting to Sedition, defined and penalized under Article 142 of the Revised Penal Code in relation to RA 10175 or the Cyber Crime Prevention Act of 2012. You see that, sir, right?

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). This conclusion was reached by you, together with other affiants, of the Revised/ Affidavit of Investigation dated February 10, 2025, correct?

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). Now, sir, you mentioned that you're not a lawyer, right?

Mr. Ligutan. Has been answered.

Mr. Narvasa (C). To date, are you aware if any court has convicted the Vice-President for grave threats over what transpired on November 23, 2024?

Mr. Calilung. As far as I know, not yet, sir.

Mr. Narvasa (C). Not yet.

The Presiding Officer. Mr. Witness, as far as you know, no?

Mr. Calilung. No, sir.

The Presiding Officer. Proceed.

Mr. Narvasa (C). Thank you, Your Honor.

To date, are you aware if any court has convicted the Vice-President for inciting to sedition over what transpired on November 23, 2024?

Mr. Calilung. No, on my personal knowledge, sir.

Mr. Narvasa (C). Thank you. But you're the complainant, right?

Mr. Ligutan. Argumentative. Your Honor.

Mr. Narvasa (C). I was just asking.

The Presiding Officer. Sustained. Move on.

Mr. Ligutan. As answered. Argumentative. You may withdraw your question. Improper.

Mr. Narvasa (C). Attached to the revised Affidavit of Investigation, which you identified and submitted to the DOJ and the Committee on Justice, is your Affidavit of Transcription of the press conference on November 23, 2024. I am showing you this now.

For the record, Your Honor, I will show the... Can you check, sir, please take a look. Can you please state for the record? This is your Affidavit of Transcription.

Mr. Calilung. Yes, sir, this is a photocopy of my Affidavit of Transcription, sir.

Mr. Narvasa (C). Transcript. This refers to the press conference on November 23, 2024.

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). You signed this on December 20, 2024.

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). Sir, please take a look at your paragraph 2. Let's read it together:

"In relation to the on-going investigation, the undersigned was tasked to transcribe the screen-recorded video of the Press Conference of VP Sara Duterte on 23 November 2024, which was saved on a DVD." You read that, sir?

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). On paragraph 3 thereof, let's read it together: "The Undersigned transcribed the video mentioned above which resulted in a CCD Transcript hereto attached."

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). You read that, sir? And 4, "I hereby certify that the above-mentioned digital evidence has been faithfully transcribed, and that it has not been edited, altered, or changed in any way." Did you read that, sir?

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). And on No. 5, paragraph 5, "I am executing this Affidavit to attest to the truth of the foregoing facts and circumstances and for whatever legal intent and purpose it may serve." Did you read that, sir?

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). These statements of yours, this Affidavit of yours, these were all done under oath, correct?

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). And you were offered as an expert in digital forensic examination with a whopping two weeks of training. Do you confirm that the transcription of the screen-recorded video of the press conference of VP Sara Duterte on 23 November, 2024 has been faithfully transcribed?

Mr. Calilung. I don't remember that I was introduced as expert, but a competent witness.

Mr. Narvasa (C). Okay, sir. My question is, the press conference of VP Sara Duterte, that the transcription of the screen-recorded video of the press conference of VP Sarah Duterte on 23 November, 2024 was faithfully transcribed by you.

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). Sir, attached to this Affidavit is the transcript, correct? Can you please take a look?

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). And, Your Honor, may I ask again that parts of the video be played—of the press conference on November 23, 2024. Let's go through it together, sir. First timestamps. First, let's go to around timestamp 00:4:46. Your Honor, may I request that the video be played. Sir, please.

[Video Presentation]

Mr. Narvasa (C). Stop.



You heard that, sir. Do you want to repeat it?

Mr. Calilung. I heard it, sir.

Mr. Narvasa (C). You heard it.

Sir, in the first, you see also where that part is. Can you see it?

Mr. Calilung. Start with the question with Red Mendoza, sir.

Mr. Narvasa (C). Okay, after, that's Zuleika Lopez. Did you hear that?

Mr. Calilung. Yes, sir.

Mr. Narvasa (C). Okay.

The Presiding Officer. Mr. Witness, kindly speak to the mic.

Mr. Calilung. Yes, Your Honor.

Mr. Narvasa (C). You heard, she said, "I am not leaving this room. I am a detainee here, here in the House of Representatives' detention facility for five days, until the hearing on Monday." That is the first sentence, sir.

My question is this: Does your transcript have the words, "a detainee?"

Mr. Calilung. Can you repeat the video, sir?

Mr. Narvasa (C). Okay, let's do it. Please repeat. Please play the video again, please.

The Presiding Officer. Audio is instructed to kindly play the video timestamp identified by Counsel for Respondent.

[Video Presentation]

Mr. Calilung. That part that the "detainee" is inaudible. "The...the" only I heard.

Mr. Narvasa (C). That you heard "the...the," correct?

Mr. Calilung. Yes.

Mr. Narvasa (C). Are the words or the sounds "the.. the"— "here, here"?

Mr. Calilung. Yes.

Mr. Narvasa (C). "Here, here." Okay.

How about the last part of the paragraph? She said, "I have my rights. I am not accused of any crime. I am not leaving this room." Does the paragraph in your transcript have the word "accused" after "not"?

Mr. Calilung. Can you play the video, sir?

Mr. Narvasa (C). Please play the video again.

The Presiding Officer. Audio is instructed to play the video. The witness is instructed to speak to the mic.

[Audio Video Presentation]

Mr. Narvasa (C). Stop.

Is the word "accused" in your transcript?

Mr. Calilung. What I heard is "the root," sir.

Mr. Narvasa (C). The root.

Mr. Calilung. "The root of any crime."

Mr. Narvasa (C). The root of any crime.

Mr. Calilung. Yes, sir.



Mr. Narvasa (C). Let's play 00:12:38.

Can you please go to 00:12:38.

(Video Presentation)

Mr. Narvasa (C). Stop. Please.

Mr. Ligutan. Your Honor please. I am now registering my objection as to the relevance, Your Honor please. If I may explain—of this line of questioning, please. If I may.

The Presiding Officer. Counsel may explain his objection.

Mr. Ligutan. Your Honor please. This witness already identified the video containing the contents of that press conference on November 23, 2024. And the Counsel is now confronting this witness whether there are miniscule portions of the two-hour video like "detainee" and "accused"—whether these appear in the transcription.

Now the basis for the objection is, irrelevant. How can it be relevant, assuming but not conceding, that these two miniscule words—"detainee" and "accused," are not reflected in the transcript when in fact this witness said he investigated not only on the basis of the transcript, but on the basis of the video that he himself viewed. What's the relevance?

The Presiding Officer. Overruled. Part of cross. To test the accuracy and the truthfulness of the witness insofar as his transcription of the video is concerned.

Mr. Narvasa (C). Thank you.

The Presiding Officer. Counsel may proceed.

Mr. Narvasa (C). Thank you.

Please play again 00:12:38.

(Video Presentation)

Mr. Narvasa (C). *Narinig mo ba? Narinig mo?*

Did you hear the Vice President speaking?

Mr. Calilung. I do not hear.

Mr. Narvasa (C). Can you please play again?

Mr. Ligutan. Mr. Calilung, you are reminded. Please answer through the microphone.

Mr. Calilung. I don't hear, sir.

Mr. Narvasa (C). Can you please play it again?

(Video Presentation)

Mr. Narvasa (C). There. Did you hear that?

Witness Calilung. There are sounds but I can't distinguish the words.

Mr. Narvasa (C). Can you do play it again?

Mr. Ligutan. Your Honor, asked and answered. What's the point?

Mr. Narvasa (C). Okay, withdrawn, Your Honor.

No further questions.

The Presiding Officer. No further questions on this witness on cross. Counsel, do you have a redirect?

Mr. Narvasa (C). Of course, Your Honor, please. For the utter failure of the respondent to debunk...

The Presiding Officer. Before I recognize Counsel for the Prosecutor, Senator-Judge Raffy Tulfo is recognized.

Mr. Narvasa (C). Your Honor, sorry. May I move to strike that statement of the Prosecutor.

Mr. Ligutan. Oh. How can it be, Your Honor? That is my manifestation. I'm about to answer the question of the Presiding Officer.

The Presiding Officer. We will review the Journal tomorrow, I did not even hear anything strikable, Counsel. But we will review the Journal tomorrow.

Mr. Narvasa (C). Your Honor, he said "For the utter failure of the respondent..."

Mr. Ligutan. Yes, Your Honor, I said for the utter failure of the respondent to debunk the material points testified to by the witness yesterday.

Mr. Narvasa (C). Your Honor, I'm not done either. He is still testifying.

Mr. Ligutan. I'm about to answer the question. I am not yet done with the answer.

The Presiding Officer. Counsels, counsels please. The Presiding Officer has not recognized either of you.

Mr. Ligutan. Thank you.

Mr. Narvasa (C). Thank you.

The Presiding Officer. Kindly settle down.

Senator-Judge Raffy Tulfo is recognized. Sir, you may proceed.

CLARIFICATORY QUESTIONS OF SENATOR-JUDGE TULFO (R)

Senator-Judge Tulfo (R). Clarification *lamang po ito*, Mr. Presiding Officer.

Mr. Witness, what is your experience with regard to social media analytics?

Mr. Calilung. I have training, sir.

Senator-Judge Tulfo (R). What kind of training?

Mr. Calilung. I have a cybercrime investigation training, sir.

Senator-Judge Tulfo (R). Okay. Are you familiar with Facebook or do you have socmed accounts that would make you a little bit knowledgeable when it comes to socmed?

Mr. Calilung. Yes, sir.

Senator-Judge Tulfo (R). What is your social media account, if any?

Mr. Calilung. I have an account in Facebook, in Instagram, in X.

Senator-Judge Tulfo (R). Okay. X. So that means you're pretty much familiar with Facebook, right?

Mr. Calilung. Yes, Your Honor.

Senator-Judge Tulfo (R). Okay. There were concerns, Mr. Witness, whether the videos presented yesterday are AI-generated or authentic. So, are you experienced enough analyzing whether a video is AI-generated or authentic?

Mr. Calilung. Yes, Your Honor.

Senator-Judge Tulfo (R). What makes you say that?

Mr. Calilung. Based on my experience. Your Honor, and the video itself, it's two hours long. Normally, an AI-generated video would only last a short second, sir.

Senator-Judge Tulfo (R). So, the video that was presented yesterday where we saw the VP was saying something or talking to that effect. Did you do something or what kind of system did you observe or follow to ensure whether that video was AI-generated or authentic?

Mr. Calilung. Based on personal observation, sir.

Senator-Judge Tulfo (R). Personal observation.

Mr. Calilung. Yes, Your Honor.

Senator-Judge Tulfo (R). Okay. A few more questions.

Therefore, will you be able to say that the video presented yesterday were AI-generated or authentic?

Mr. Calilung. The video presented today is what is being seen on the Facebook, sir.

Senator-Judge Tulfo (R). Okay. So, based on your Affidavit, you mentioned that the NBI subpoenaed some members of the media who were participants of the online presscon on November 23, 2024, right?

Mr. Calilung. Yes, Your Honor.

Senator-Judge Tulfo (R). And subsequently, you said that you questioned and investigated these persons regarding the conduct of that presscon. So, based on what you gathered from your investigation, so I have a few questions, right?

Mr. Calilung. Yes, Your Honor.

Senator-Judge Tulfo (R). Who set up the press conference?

Mr. Calilung. Based on our interview, sir, it is the Office of the Vice President, sir.

Senator-Judge Tulfo (R). So, it wasn't spur of the moment presscon?

Mr. Calilung. I can't confirm, sir, but it's the response of the media personnel that we interviewed.

Senator-Judge Tulfo (R). Okay. Who invited the participants?

Mr. Calilung. If my memory serves me right, its J.C. Cahinhinan, sir.

Senator-Judge Tulfo (R). Okay. Who is J.C.?

Mr. Calilung. Staff of the Office of the Vice President, sir.

Senator-Judge Tulfo (R). Okay. Who were the participants and how many participants were there? If you can remember.

Mr. Calilung. As far as I remember, it's at least 40.

Senator-Judge Tulfo (R). Forty. Okay. Were there mainstream media or anybody from the broadsheets at that time?

Mr. Calilung. There are, sir.

Senator-Judge Tulfo (R). There were.

Mr. Calilung. Yes, sir.

Senator-Judge Tulfo (R). Do you know many? Approximately. Give or take.

Mr. Calilung. The one that we have issued subpoenas, sir, at least six, sir.

Senator-Judge Tulfo (R). Okay. What was the reach of the video on that very day? Like, how many views on that very day and then a few days later? Were you able to observe that?

Mr. Calilung. I can't remember, sir.

Senator-Judge Tulfo (R). You can't remember. Okay. How did it spread o *paano kumalat sa socmed* *iyong* video that was presented yesterday, as far as you know, when you did an investigation?

Mr. Calilung. It became trending, sir.

Senator-Judge Tulfo (R). It became trending. And my last question is, *kasi in-e-establish dito* is inciting to sedition on top of *iyong sa sinasabing* grave threat. *Ano iyong mga comments na napansin mo doon sa video?* Can you give us an example?

Mr. Calilung. One of the comments, because on the video November 23, there were mentioned about People Power. When asked a question by Princess Maui, and the vice president responded, agreed, and "*ang laban ay wala sa EDSA, nasa Malacañang,*" and there are responses from the comments, but it's not documented, that is agreeing, sir.

Senator-Judge Tulfo (R). No further question, Mr. Presiding Officer.

CLARIFICATORY QUESTIONS OF SENATOR-JUDGE AQUINO

Senator-Judge Aquino. *Maraming salamat*, Mr. Presiding Officer.

Mr. Calilung, *kanina may nabanggit na dalawang affidavit, isang January at isang February. Iyong January ay binalik sa inyo, tama po ba?*

Mr. Calilung. Yes, Your Honor.

Senator-Judge Aquino. And there were seven grounds why it was returned to you? Is that correct?

Mr. Calilung. Seven points.

Senator-Judge Aquino. Can you narrate what are these seven points that were that you addressed? Is that the correct term, that you addressed in the second affidavit?

Mr. Calilung. Yes, Your Honor.

Senator-Judge Aquino. Can you name them, please?

Mr. Calilung. May I have the certificate, sir?

The Presiding Officer. Who has a copy of the certification? Was it counsel for the respondent?

Mr. Narvasa (C). Your Honor, may I approach?

The Presiding Officer. Yes, you may approach and show him the document being alluded to by Senator-Judge Aquino.

Mr. Calilung. Note 1: There is no affidavit of the person who recorded at the video entitled "VP November 23 presscon at Batasan through Open Broadcast Software Studio" and in turn stored in the DVD.

No. 2. The press briefing conducted on October 18, 2024 was not recorded and or stored in DVD, and there was no TSN of the said briefing and the necessary affidavit of the person taking the TSN.

No. 3. Annex I and K DVD with markings NBI-CCN-C-24-12436-2 and NBI-CCN-C-24-12436-2 were not accompanied by an affidavit of the recorder and the TSN.

No. 4. Annex L did not indicate who made the TSN. There was also no affidavit of the person who made the TSN.

No. 5. The affidavit of one Patricia Morales mentioned that she stored the footage in a USB and submitted to the NBI. However, there was no USB attached to the complaint, only DVD was attached. There was no detail regarding the content of this DVD.

No. 6. Only the minutes of the meeting with several personalities and representatives from various media outfits were submitted. Although the minutes were signed, there was no individual affidavit executed regarding to the contents of the said minutes.

No. 7. One of the elements of a crime of grave threat is that the offender threatens another with the infliction upon the latter's person, honor, and property or upon that of the latter's family, or if the wrong amounting into a crime. In the instant complaint, only the NBI executed an affidavit, and there was no participation on the part of the offended party, as it appears that the NBI is not the offended party of the crime of grave threat.

Senator-Judge Aquino. Okay. So, *nakuha mo iyong nag-submit kayo, iyan iyong binalik sa inyo*, and then you did your best to correct all those items. Is that correct?

Mr. Calilung. Yes, Your Honor.

Senator-Judge Aquino. Okay. The first six are technical?

Mr. Calilung. Yes, Your Honor.

Senator-Judge Aquino. *Iyong panghuli* is a matter of who is the offended party.

Mr. Calilung. Yes, Your Honor.

Senator-Judge Aquino. *Hindi ninyo na-correct iyan? Or noong binalik ninyo*, it was accepted already by the DOJ?

Mr. Calilung. There is an explanation, Your Honor, that was included in the letter of the former director, Judge Jaime Santiago, sir.

Senator-Judge Aquino. Okay.

Mr. Calilung. Wherein, in the filing for preliminary investigation, it is not required for the victim to execute a complaint affidavit.

Senator-Judge Aquino. *Iyan iyong sagot ng NBI?*

Mr. Calilung. Yes, Your Honor.

Senator-Judge Aquino. And once you submitted, it was accepted by the DOJ?

Mr. Calilung. Yes, Your Honor, and we received a certification, Your Honor, that our evidence is enough for preliminary investigation, sir.

Senator-Judge Aquino. Okay, *iyon na iyong* second response to the second affidavit that you provided?

Mr. Calilung. Yes, Your Honor.

Senator-Judge Aquino. Okay. *May mga nabanggit doon sa mga statements tungkol sa hitman. Sa totoo lang, iyong presensya ng hitman, mabigat iyon, mabigat iyon.* So, let me ask, are you the one who investigated just the video, or did you also investigate the presence of the hitman that was being mentioned in the videos of the vice president?

Mr. Calilung. I was only tasked for the video, sir.

Senator-Judge Aquino. Okay. May I direct this to the prosecution? Will you be presenting other witnesses that will pertain to this alleged hitman?

Mr. Ligutan. As to the alleged hitman, Your Honor, please, yes.

Senator-Judge Aquino. Yes. So, *kayo, Mr. Calilung, hindi kayo ang nag-imbestiga niyan. Wala kayong alam tungkol doon sa presensya ng hitman?*

Mr. Calilung. Yes, Your Honor.

Senator-Judge Aquino. Okay. Mr. President, I will refrain from my questions and wait for the witness pertaining to the hitman.

Maraming salamat.

The Presiding Officer. Noted and entered into the records.

CLARIFICATORY QUESTIONS OF SENATOR-JUDGE PANGILINAN

Senator-Judge Pangilinan. Thank you, Mr. Presiding Officer.

The question is for the witness. *Kanina tinanong sa iyo ng defense counsel, o counsel for the respondents, kung ikaw ay abogado? Ang sagot mo, hindi.*

Mr. Calilung. Yes, sir.

Senator-Judge Pangilinan. *Ikaw ba ay degree holder?*

Mr. Calilung. Yes, Your Honor.

Senator-Judge Pangilinan. *Ano ang degree?*

Mr. Calilung. Bachelor of Science in Accountancy, Bachelor of Science in Accounting and Technology, and I'm a certified public accountant, sir.

Senator-Judge Pangilinan. So, you are a certified public accountant?

Mr. Calilung. Yes, Your Honor.

Senator-Judge Pangilinan. *Kahapon, tinanong ko sa iyo iyong training kasi nabanggit mong nagkaroon ka ng mga training. Ang nabanggit mo kahapon, dalawang weeks ng training.*

Mr. Calilung. Yes, Your Honor.

Senator-Judge Pangilinan. *Pero, on what matter?*

Mr. Calilung. Only on photo and video authentication, sir.

Senator-Judge Pangilinan. Okay. *Meron pa bang ibang training na you went through bilang expert or competent witness sa usapin ng digital technology, cybersecurity, online training, meron ba?*

Mr. Calilung. Yes, Your Honor.

Senator-Judge Pangilinan. *Anong mga ito?*

Mr. Calilung. I mentioned that I have a training in certified computer hacking forensic investigator. I have a training in computer forensics, mobile forensics, and photo and video authentication training. I also have training in cybercrime investigation. We have also undergone 480 hours of training on cybersecurity. And before we start the bureau, we have undergone the NBI Academy, which teaches us all the aspects of investigation, sir.

Senator-Judge Pangilinan. Okay. And *siguro* last question, ang training na ito puro local ba o meron din training sa ibang bansa?

Mr. Calilung. I have an international, sir, recently.

Senator-Judge Pangilinan. *Ano iyan?*

Mr. Calilung. It's a training in Strasbourg. The name of training is...

The Presiding Officer. *Saang lugar na lang, Mr. Witness?*

Senator-Judge Pangilinan. Strasbourg, Germany?

Mr. Calilung. Strasbourg, France, sir. It's a five-day training.

Senator-Judge Pangilinan. And *meron pang ibang international seminars na inatendan mo?*

Mr. Calilung. International, sir, but it is conducted locally, the INTERPOL, sir.

Senator-Judge Pangilinan. INTERPOL?

Mr. Calilung. Yes, Your Honor.

Senator-Judge Pangilinan. Okay. I have no further questions.

CLARIFICATORY QUESTIONS OF SENATOR-JUDGE HONTIVEROS

Senator-Judge Hontiveros. Salamat po, Mr. Presiding Officer.

Para sa counsel for the defense, Mr. Presiding Officer. Just for clarity, ano pong relevance ng video na ipinakita ni Atty. Zuleika Lopez? Sinasabi po ba ng depensa na iyong mga alleged threats o alleged incitements ni VP Duterte ay prompted noong detention ni Atty. Lopez?

Mr. Narvasa (C). Yes, Your Honor. There was a systematic oppression made by the House of Representatives dating back from their—even before their mini-trial, Your Honor. The committee headed by Rep. Joel Chua began investigating the vice president and her people. Even when

Ms. Zuleika, Atty. Zuleika Lopez, was being interviewed by the House Committee—Quadcom Committee— even if she was answering the questions faithfully to the best of her availability, she was cited in contempt, detained, her lawyer was not allowed—her lawyer was not allowed to be with her when they were trying to detain her in the Women's Correctional facility.

Senator-Judge Hontiveros. So, Mr. Presiding Officer, counsel for the defense, position *po ba ng depensa na puwedeng palampasin ang* alleged grave threats *kung may masasabing lehitimong dahilan para magbanta?*

Mr. Narvasa (C). Your Honor, that is not the point.

Senator-Judge Hontiveros. No, no, no. Mr. Presiding Officer, I am making a point through my question, and I am asking the good counsel for the defense *dahil sinabi nila* there was a systematic oppression that, yes, *iyang po ang nag-prompt noong* alleged grave threats and alleged incitements *ng Vice President, na-prompt po ng* detention *ni Attorney Lopez ng kaniyang inilarawan sa ipinakitang video kanina, kaya itinatanong ko kung iyan ba ang posisyon ng depensa na puwedeng okay lang or puwedeng tanggapin ang* grave threats *kung may masasabing lehitimong dahilan para magbanta?*

Mr. Narvasa (C). Yes, Your Honor.

The Presiding Officer. Before counsel for respondent answer—

Senator-Judge Hontiveros. Yes, Mr. Presiding Officer.

The Presiding Officer. Though you already answered in the affirmative—

Mr. Narvasa (C). You know, Your Honor, my— I was just referring to before—

The Presiding Officer. I would like to remind the senators-judges to be cautious in making counsels for either party make conclusions of law and fact instead of presenting evidence through a witness they will present, or through direct, cross, redirect, or recross. Because if he answers, Senator-Judge Hontiveros, that would effectively place on record a conclusion of fact and law, not drawn from a witness which they can very well do so during their closing remarks and when I allow him to speak, by way of repartee, to the peroration yesterday and discussion yesterday by counsel for the prosecution. But other than that, as agreed with some of the senator-judges, we would try to limit the answers of the counsels for the parties. With your indulgence, Senator-Judge Hontiveros, please.

Senator-Judge Hontiveros. I submit, Mr. Presiding Officer. May I just, in closing, make of record that I also appreciated and also submitted to the ruling of the Presiding Officer yesterday because I appreciated that it partook of the history of impeachment proceedings in this Court. *Pinag-aralan ko rin po nang maigi ang mga nakaraang mga impeachment trials at di hamak na pati noon, naging liberal ang pagpapahintulot nila sa mga katanungan ng mga senator-judges para lang mas maliwanagan ang iba't ibang punto.*

So, I again thank the good Presiding Officer and again reiterate my submission to his ruling, and thank the good counsel for the defense for his response.

CLARIFICATORY QUESTIONS OF SENATOR-JUDGE VILLANUEVA

Senator-Judge Villanueva. Thank you very much, Mr. Presiding Officer. May I just point out something to the witness, Mr. President, Your Honors? The witness mentioned yesterday that the reported statements of the Vice President were referred to the Presidential Security Command and evaluated in coordination with the National Security Council. Just to assist the court in evaluating the relevance and weight of the government security response in determining whether the respondent's conduct constitutes an impeachable offense. May we know from the witness, or could the witness explain *iyong* threats *po ba*, how threats against the President are ordinarily assessed by the government? *Kasi dito lumalabas iyong pag-weigh natin*, whether or not *meron bang bigat iyong threat o ito'y ordinaryong threat na nangyayari sa pang-araw-araw nating buhay*. Specifically, Mr. Witness, what factors are taken into account in evaluating a reported threat and in determining appropriate measures?

Mr. Calilung. I can't answer on the part of the NSC or—because I'm not part of the institution.

Senator-Judge Villanueva. In your *ano po*, in your capacity as a witness?

Mr. Calilung. In my capacity, one of the considerations if it's an active threat, if the ones giving the threat is capable of doing so.

Senator-Judge Villanueva. Meaning, high-ranking officials, did you say an official?

Mr. Calilung. One who has a capability or power to implement those such threat, it is considered, sir.

Senator-Judge Calilung. Example, a mayor, perhaps? Would you say a high-ranking official? A congressman? Or *iyong basehan po ng kaniyang threat, kunwari ang threat ko dadalhin kita doon sa buwan, wala naman akong space shuttle*. So, *wala rin pong bearing iyon*, is that a correct assumption?

Mr. Calilung. Not only, sir, but also how it was delivered, sir, like what was mentioned previously, it was mentioned that "no joke, no joke." It's serious.

Senator-Judge Villanueva. So, that is the consideration.

Mr. Calilung. One of the considerations.

Senator-Judge Villanueva. Thank you very much.

And lastly, Mr. Witness, you made mention *na-submit mo sa DOJ noong January 30*, is it the same affidavit that you submitted to the HOR?

Mr. Calilung. The one that (was) submitted to the HOR is the affidavit dated February, sir.

Senator-Judge Villanueva. So, that's the latest?

Mr. Calilung. Yes, sir. The one that complied with the requirements of the DOJ, sir.

Senator-Judge Villanueva. Thank you very much for that clarification. Thank you, Mr. President.

The Presiding Officer. Thank you, Senator-Judge Villanueva.

Before I recognize Senate President Gatchalian and thereafter, Senator-Judge Erwin Tulfo, may I remind Attorney Narvasa that your five minutes—you will be given your five minutes after the questions of the Senator-Judges, and before we recognize the counsel for the prosecutor for his redirect.

Mr. Narvasa (C). May I be clarified? I believe that we will do it after re-cross.

The Presiding Officer. I heard cross. After re-cross.

Mr. Narvasa (C). Yes, Your Honor.

The Presiding Officer. Better for us.

Mr. Narvasa (C). Yes, sir.

CLARIFICATORY QUESTIONS OF SENATOR-JUDGE GATCHALIAN

Senator-Judge Gatchalian. Thank you, Mr. Presiding Officer. I just have a few questions, clarificatory questions. *Narinig ko po kanina, Ginoong Testigo, na ang sabi ninyo may 40 media personalities doon sa presscon, tama po ba?*

Mr. Calilung. Yes, Your Honor.

Senator-Judge Gatchalian. *Pero ang inyong inimitahan ay anim lang?*

Mr. Calilung. Yes, Your Honor.

Senator-Judge Gatchalian. *Bakit anim lang?*

Mr. Calilung. The 40, we see the number of participants, but the number of persons who asked the Vice President during that time, it's limited, and we considered who, we sure that is present during that time. Your Honor.

Senator-Judge Gatchalian. *Mayroon ba kayong criteria kung paano pipiliin itong mga media personalities or kung sino lang ang nagtatanong? Kasi kahit hindi ka naman magtatanong, nandoon ka naman, naririnig mo iyong mga diskusyon. Mayroon ba kayong mga criteria kung paano pumipili ng media personalities?*

Mr. Calilung. *Iyong sure po namin na present during that time, kasi kapag hindi po kasi kayo nagtatanong, hindi po magpa-pop up yung mukha ninyo, saka iyong pangalan ninyo.*

Senator-Judge Gatchalian. *Okay. At itong mga anim na na-subpoena ninyo, ano iyong kanilang common statement na ibinigay?*

Mr. Calilung. *Kinonfirm po nila na present sila during the November 23, 2024 press conference, and iyong utterance po ni Vice President narinig po nila.*

Senator-Judge Gatchalian. *Okay. I believe ilan dito sa mga personalities ay ipapatawag rin?*

So, tatalon ako sa ibang topic. Nakita ko kanina itong tungkol sa MaxCor Interventures at nakita ko kanina, pinakita iyong Articles of Incorporation, mukha siyang supplier ng equipment. Ngayon, nasabi rin na doon ka nag-training for two weeks. Sino nagbayad noong training?

Mr. Calilung. *Sir, the training is included in the procurement of digital forensic tools. In the procurement document, ni-require po si MaxCor na mag-provide po noong training included in the equipment, sir.*

Senator-Judge Gatchalian. *Iyong paggamit noong equipment?*

Mr. Calilung. *Saka iyong ano po, iyong process po ng digital forensic as a whole.*

Senator-Judge Gatchalian. *Hindi ba sa mga IT, let's say, Oracle, alam natin kilala yan pagdating sa IT. Si MaxCor ba ay kilala pagdating sa digital forensic training? Nakita ko kanina talagang supplier sila, but are they a well-known or internationally known training organization?*

Mr. Calilung. *It is not the MaxCor itself, but it is the trainer that they provide, Sir, that is capable in training us.*

Senator-Judge Gatchalian. *Itong trainer na ito, certified siya in this type of technology?*

Mr. Calilung. *Yes, Sir. The trainer has a lot of certifications in relation to digital forensics, Sir.*

Senator-Judge Gatchalian. *Can you name a few certifications na mayroon itong trainer na ito?*

Mr. Calilung. *I cannot remember, Sir.*

Senator-Judge Gatchalian. *Let us say, Oracle, or let us say Microsoft, di ba, may mga ganiyan.*

Mr. Calilung. *No, Sir. CompTIA, Sir. CompTIA Training. I believe he also has a certified ethical hacking certification and a lot more, Sir, when it was presented to us.*

Senator-Judge Gatchalian. *Alright. So, itong mga trainers na ito ay certified trainers na pwedeng mag-train sa iyo at magiging certified ka rin?*

Mr. Calilung. *Yes, Sir. Inisyuhan ako ng certificate, Sir.*

Senator-Judge Gatchalian. *Lastly, Mr. Presiding Officer.*

After training, nakakuha ka ba ng certification na katulad sa kanila?

Mr. Calilung. *No, Sir. But that certification that I was trained by them, Sir.*

Senator-Judge Gatchalian. *Pero ikaw mismo, are you certified to do forensic examinations for your purpose and responsibility?*

Mr. Calilung. *I have a certification, Sir. I am a certified computer hacking forensic investigator, Sir.*

Senator-Judge Gatchalian. *Itong forensic analysis, mayroon kang, for this purpose, itong pinag-uusapan natin?*

Mr. Calilung. The authentication part, Sir, or as a whole, Sir?

Senator-Judge Gatchalian. As a whole. As a whole.

Mr. Calilung. I have a certification in computer hacking, Sir, specific. But I have trainings in relation to the...

Senator-Judge Gatchalian. No. *Iba iyong hacking eh. Ang usapan natin forensic examination ng video, forensic examination ng mga ganitong bagay. Mayroon kang certification doon?*

Mr. Calilung. I have certificate, Sir.

Senator-Judge Gatchalian. Thank you. Thank you, Mr. Presiding Officer.

CLARIFICATORY QUESTIONS OF SENATOR-JUDGE TULFO (E)

Senator-Judge Tulfo (E). *Ang katanungan ko po ay para sa ating testigo. Batid ko po na sa ilalim ng Republic Act 10867, sa ilalim po ng Section 4, ang kapangyarihan po ng inyong ahensya na mag-imbetiga ng mga krimen, partikular na tulad ng mga banta sa buhay ng Pangulo, Ikalawang Pangulo, Senate President, Speaker of the House, at Chief Justice. Tama po iyon?*

Mr. Calilung. Yes, Your Honor.

Senator-Judge Tulfo (E). *Kahit na, lalo pa kapag at ito ay may kaugnayan sa national security. Tama po?*

Mr. Calilung. Yes, Your Honor.

Senator-Judge Tulfo (E). *Pero ang tanong ko po, ang pagsasampa po ba ng kaso, nasa mandato rin po ba ng NBI na magsampa ng kaso doon sa mga tao na nagbanta sa buhay ng Pangulo, Ikalawang Pangulo, Senate President, Speaker of the House, Chief Justice? Is it automatic, or kailangan mag-request sila sa inyo? Matic ba yung pagsasampa ng kaso doon sa nagbanta? In this case, is it automatic, or, well, kasama sa mandato ninyo to file charges dahil binantaan ang Pangulo o si Bise Presidente o kung sino man iyang apat na matataas na opisyal natin, or limang matataas na opisyal natin?*

Mr. Calilung. *Ang basis namin doon, Your Honor, is iyong primary objective namin to investigate cases of threat to the President, Vice President, Senate President, Supreme Court. And if we found that the evidence is enough that there is a crime committed, we will file a case, because that is the output of our investigation, Sir.*

Senator-Judge Tulfo (E). *Kahit po ba na hindi iyong biktima—in this case, ang Pangulo—biktima ng pag-threat, kahit na hindi siya nagreklamo, automatic po iyon? Kahit na hindi siya nagreklamo sa inyo?*

Mr. Calilung. Yes, Your Honor.

Senator-Judge Tulfo (E). All right.

Hindi n'yo na siya kailangan tanungin pa na, "Sir, gusto niyo po bang kasuhan namin ito?" Wala nang ganoon? You will never ask, hindi lamang Pangulo, Bise Presidente, nangyari rin ito sa Bise Presidente, o sa Speaker of the House, sa Senate President, o sa Chief Justice. Hindi n'yo naman lang siya i-afford to ask him na, like, "Sir, will you go through the process? Kasi mag-provide ako ng mga affidavit. This is a long process, et cetera." Kahit sa Pangulo pa po, may pipirmahan kang mga affidavit. Is it automatic, Mr. Witness?

Mr. Calilung. We submitted it, Sir, even without a complaint for preliminary investigation.

Senator-Judge Tulfo (E). No further questions, Mr. Presiding Officer.

REQUEST OF SENATOR-JUDGE MARCOS

Senator-Judge Marcos requested the following documents:

1. The first Affidavit of Investigation dated January 30, prepared by the NBI, concerning the alleged offenses of grave threats and inciting to sedition;

2. The DOJ Certification dated February 5, signed by Prosecutor Bandong, identifying seven grounds for finding the complaint insufficient for the conduct of a preliminary investigation;
3. The Revised Affidavit of Authentication dated February 10, which had already been provided by the staff, as well as the Second Revised Affidavit of Authentication dated February 11;
4. The accompanying letter, identified by witness Calilung as not forming part of the record, transmitted by NBI Director Jaime C. Santiago to DOJ Prosecutor General Fadullon together with the second revised Affidavit of Authentication;
5. The DOJ Certification dated February 14, stating that the revised Affidavit of Investigation was sufficient for the conduct of a preliminary investigation; and
6. The Investigation Data Form dated March 7, noting that it had been prepared almost one month after the submission of the Affidavit of Authentication.

Senator-Judge Marcos emphasized the need to review the foregoing documents to better understand the records of the investigation. She likewise requested that any documents furnished to the senator-judges be clearly identified rather than merely designated by exhibit markings such as "GGGGG" or "FFFFF." She further expressed hope that the complete set of documents would be made available at the earliest possible time.

In response, Presiding Officer Escudero explained that the Court possessed only those documents that had been pre-marked by the parties during pre-trial proceedings. He noted that some of the documents identified by Senator-Judge Marcos had not been pre-marked and had merely been used during the cross-examination of the prosecution witness. He assured Senator-Judge Marcos that the Court would provide whatever documents were available through the Office of the Clerk of Court, while emphasizing that such documents had not yet been formally offered in evidence by either party. Accordingly, he explained that the Court would still have to await the parties' formal offer of evidence before determining their admissibility, if necessary. He assured Senator-Judge Marcos that the Court would endeavor to comply with her request to the fullest extent possible.

REQUESTS OF SENATOR-JUDGE CAYETANO (A)

Senator-Judge Cayetano (A) seconded the earlier request of Senator-Judge Marcos and further requested that copies of the previous day's Ruling of the Presiding Officer likewise be furnished to the senator-judges, emphasizing the importance of enabling all Members to closely follow the proceedings. He reiterated the observation of Senator Cayetano (P) that those seated in the front row had difficulty viewing the television monitors and suggested that additional screens be installed in front of the senator-judges.

In response, the Presiding Officer stated that television monitors would be installed in front of the counsels' tables.

Senator-Judge Cayetano (A) also proposed utilizing iPads or tablets, with the Secretariat, the Office of the Clerk of Court, and the senators' respective staff coordinating to facilitate access to the documents. To illustrate the need for a more efficient system, he pointed out that page 19 of the Impeachment Complaint, specifically Footnote No. 72, referred to an affidavit allegedly contained in Annex G. He noted, however, that Annex G actually contained a certification and that the affidavit was instead located in Volume 14, Annex FFFFFFFFFF to GGGGGGGGGG. He further observed that the annexes had been assigned different labels when initially distributed and were later given new exhibit markings after being pre-marked, making the documents difficult to identify.



The Presiding Officer acknowledged the observation.

Senator-Judge Cayetano (A) clarified that he was not requesting the advance disclosure of documents that might prejudice either party's presentation or rebuttal. He proposed that copies, whether in digital or printed form, be furnished to the senator-judges as they are shown to the witnesses, to facilitate a clearer understanding of the proceedings. He clarified that he was not proposing that the parties provide 24 printed copies of every document. Noting that the hearing was being held on a Wednesday, he suggested that, beginning the following day, the Office of the Clerk of Court coordinate with the respective staff of the Senator-Judges to develop an appropriate system for providing access to the documents.

In response, the Presiding Officer stated that the senator-judges would be provided, on a per-article basis, with electronic copies of the prosecution's pre-marked evidence for Article IV through their official email addresses for viewing on their iPads or laptops. He added, however, that the documents presented by Counsel for the Respondent had not yet been pre-marked, although copies could nevertheless be requested from the Respondent's counsel for the guidance of the senator-judges, without prejudice to the Court's subsequent determination of whether such documents would be formally offered in evidence.

Senator-Judge Cayetano (A) replied that even if the documents had already been pre-marked, he would have no objection to receiving them only in real time if earlier disclosure might prejudice a party's presentation. He likewise requested that documents used during cross-examination, recross-examination, or rebuttal—even if not pre-marked—be made available to the senator-judges in real time so that they could review them during the proceedings rather than only after adjournment, which could affect their preparation for the next hearing.

The Presiding Officer then asked respondent's counsel whether such arrangement would likewise be feasible once the parties' roles were reversed. In response, Attorney Narvasa clarified that all the documents shown during the day's proceedings had already been pre-marked by the respondent.

The Presiding Officer remarked that the response differed from his understanding, noting that the DOJ letter presented appeared to be different from the DOJ letter contained in the Court's pre-marked records. Relative thereto, he stated that the matter would be verified.

Attorney Narvasa, however, replied that all the documents had been pre-marked. The Presiding Officer then observed that one document appeared to have been presented without any marking by either party, to which Attorney Narvasa again maintained that all the documents he presented had been pre-marked.

The Presiding Officer stated that if all the documents had indeed been pre-marked, there would be no objection to furnishing copies thereof to the senator-judges. Attorney Narvasa confirmed that the Respondent's counsel had no objection to such an arrangement. The Presiding Officer further remarked that Senator-Judge Cayetano (A)'s concern would effectively be addressed if all the documents had in fact been pre-marked, adding that ensuring the proper identification and distribution of the documents was the responsibility of the Court. He then inquired whether the Prosecution could likewise furnish copies of its documentary evidence, to which Attorney Ligutan replied in the affirmative.

Presiding Officer Escudero additionally observed that Counsel for the Respondent had been helpful in displaying the affidavits on the courtroom monitors during the presentation and encouraged the Prosecution to adopt the same practice.

INQUIRY OF SENATOR-JUDGE CAYETANO (A)

Senator-Judge Cayetano (A) sought clarification as to whether the prescribed two-minute limit applied only to asking questions and excluded the witness's responses. The Presiding Officer confirmed that the two-minute allotment pertained solely to the asking of questions.

Senator-Judge Cayetano (A) further requested that the allotted time likewise exclude instances where the witness would ask to repeat the question. While acknowledging that two minutes might be sufficient for brief inquiries, he observed that many senator-judges wished to examine the issues more thoroughly rather than ask only one or two questions. In response, the Presiding Officer assured Senator-Judge Cayetano (A) that the Court would apply the two-minute rule with reasonable leniency.

MANIFESTATION OF SENATOR-JUDGE CAYETANO (A)

Senator-Judge Cayetano (A) emphasized the importance of ensuring that the questioning remained appropriate in light of both the previous days' proceedings and the current hearing. He stated that he would not object if either counsel respectfully called attention to a question that appeared to be improperly framed or that might prejudice the case in favor of either party.

He clarified, however, that while counsel could not correct a senator-judge, he welcomed respectful observations whenever counsel believed that a question might prejudice the proceedings, recognizing that doing so formed part of counsel's duty to protect the interests of the parties represented.

QUESTIONS OF SENATOR-JUDGE CAYETANO (A)

Senator-Judge Cayetano (A). So, this is not the start of the two minutes yet.

Magandang hapon, Mr. Witness.

Mr. Calilung. Good afternoon, Your Honor.

Senator-Judge Cayetano (A). *Medyo mahaba na iyong pag-upo mo diyan* but allow me a few questions. *Iyong circumstance lang, so paano nagsimula iyong imbestigasyon na na-involve ka* from the start *o hindi, at* written instructions *ba ito o sinabi* or *may imbestigasyon tayo?* Just *konting clarity: Paano nag-umpisa iyong specific investigation*, and was it based on the November 3 video, *tama ba?*

Mr. Calilung. November 23, Your Honor.

Senator-Judge Cayetano (A). Okay.

Mr. Calilung. It all started, I received a phone call, Sir, from my executive officer that there is a video wherein there is a statement given by the Vice President, which is classified as threat, and I was tasked and assigned to investigate the case, Sir.

Senator-Judge Cayetano (A). Okay. So basically, *ganoon iyong pagkasabi na* "I am tasking you to look at the video and investigate?"

Mr. Calilung. Yes, Your Honor.

Senator-Judge Cayetano (A). Were you working alone, or with a group?

Mr. Calilung. With a group, Your Honor.

Senator-Judge Cayetano (A). NBI group?

Mr. Calilung. Yes, Your Honor.

Senator-Judge Cayetano (A). And is there an interagency also? Or just purely NBI?



Mr. Calilung. I do not have personal knowledge. Maybe our Chief, Sir, has personal knowledge of that, Sir.

Senator–Judge Cayetano (A). No, that is all I ask for *naman, iyong* personal knowledge.

Mr. Calilung. Yes, Your Honor.

Senator–Judge Cayetano (A). So, *pakiulit mo iyong sinabing*—how exactly *sinabi sa iyo na*, “*Tingnan mo iyong video, imbestigahan mo*,” or may statement?

Mr. Calilung. To be specific, Sir, as far as I remember, *may* statement *si* Vice President regarding the November 23 press conference *na kung saan may pagbabanta na naganap*, “*Pakiimbestigahan*.”

Senator–Judge Cayetano (A). “*Pakiimbestigahan*.” So *ganoon ka-general*?

Mr. Calilung. Yes *po*.

Senator–Judge Cayetano (A). *May pagbabantang naganap, pakiimbestigahan*?

Mr. Calilung. Yes *po*.

Senator–Judge Cayetano (A). And you proceeded by watching the video?

Mr. Calilung. Yes, Your Honor.

Senator–Judge Cayetano (A). And when you watched the video, you got to the part *na may pagbabanta*?

Mr. Calilung. No, Your Honor. I first do not know which part of that.

Senator–Judge Cayetano (A). So, you watched the whole video, of course.

Mr. Calilung. First, the clippings, Your Honor.

Senator–Judge Cayetano (A). Okay.

Mr. Calilung. Then I looked for the whole video, Your Honor.

Senator–Judge Cayetano (A). Then you watched the whole video?

Mr. Calilung. Yes, Your Honor.

Senator–Judge Cayetano (A). And thank you for your honesty.

So, after the clipping, *tapos* the whole video, what did you do next? You reported or you made your recommendations? I do not understand the process *lang kasi*.

Mr. Calilung. Upon identifying the whole video, I informed my executive officer that I identified the video, Your Honor.

Senator–Judge Cayetano (A). And then *iyong sinabi mo* yesterday, then you started looking for patterns. That is why you looked at *iyong dating mga* video *ni* Vice President?

Mr. Calilung. Yes, Your Honor.

Senator–Judge Cayetano (A). So, you started investigating the threat against the President, the First Lady, and the former Speaker of the House?

Mr. Calilung. Yes, Your Honor.

Senator–Judge Cayetano (A). Did you investigate the threat against the Vice President?

Mr. Calilung. We tried, Your Honor.

Senator–Judge Cayetano (A). How did you try?

Mr. Calilung. It is included in our letter to the Vice President, Your Honor. That is why we are inviting her to proceed to our office to investigate the threats to her life, Your Honor.

Senator–Judge Cayetano (A). How about the vlogger who asked her about the *Oplan* or whatever they call that, *Romanov*? Did you invite them?

Mr. Calilung. Yes, Your Honor.

Senator-Judge Cayetano (A). And did they testify?

Mr. Calilung. The Princess Maui did not appear, Your Honor.

Senator-Judge Cayetano (A). Did not appear. Did you also look for previous videos that are threatening to the Vice President?

Mr. Calilung. We looked on the *Romanov* part, Your Honor, but we identified a different person who mentioned—who first mentioned the *Romanov*, Your Honor.

Senator-Judge Cayetano (A). Did you coordinate with the PSG?

Mr. Calilung. I have no personal knowledge, Your Honor.

Senator-Judge Cayetano (A). You yourself?

Mr. Calilung. Yes, Your Honor. Maybe our chief, Your Honor.

Senator-Judge Cayetano (A). But you are aware that the primary responsibility of protecting both the President and the Vice President is the PSG?

Mr. Calilung. Yes, Your Honor.

Senator-Judge Cayetano (A). So, isn't it fair to say that any investigation against a threat to the first family, the President, or the Vice President, you would normally ask the PSG if they received any threat?

Mr. Calilung. I have no personal knowledge, Your Honor.

Senator-Judge Cayetano (A). No, I am asking *hindi ba normal sa investigation kung sino iyong primary agency na taga-protekta na lumalaban doon sa threat ay tatanungin natin?*

Mr. Calilung. Yes, Your Honor.

Senator-Judge Cayetano (A). So, *bakit hindi tinanong ng NBI ang PSG?* Or in your case, why did not you ask the PSG?

Mr. Calilung. Maybe it can be answered by our Chief, Your Honor.

Senator-Judge Cayetano (A).No, I'm not—I will ask your chief also. I'm asking you: When they said, "Look at this, you looked at other videos, you tried to get Princess Maui, you tried to get the Vice President," but you didn't contact the PSG for the First Lady, for the President, and for— for all you know, the PSG will tell you right then and there the threat is real, or the PSG will say, "*politika lang iyan, di ba?*" Both the Vice President and the President are protected by the PSG. So, *nakalimutan lang, or wala sa procedure ninyo, or—?*

Mr. Calilung. Your Honor, there is already a statement from the National Security Council, Your Honor, that it is an active threat, Your Honor. That's why we started the investigation.

Senator-Judge Cayetano (A). Yes. And the primary group that will know if it's an active threat is the PSG. So, if this was the United States, it would be the Secret Service. So, whether the FBI, or the CIA, state troopers, the federal marshals—*kung sino man mag-iimbestiga, parati nilang tatanungin yung Secret Service.* So I'm just curious why we did not ask the PSG's input.

The Presiding Officer. Kindly wind up, Senator-Judge Cayetano (A).

Senator-Judge Cayetano (A). So, my last question is: How did you characterize the threat of the Vice President to the President, given that *ang exact words niya, "Huwag kang mag-alala, Ma'am, sa security ko kasi may kinausap na akong tao, sinabi ko sa kaniya, 'Kapag pinatay ako'—".* So that would be fair to you and not vague, 'no'? Did that phrase, "*Kapag pinatay ako*" have any bearing in your investigation?

Mr. Calilung. Yes. Your Honor.

Senator-Judge Cayetano (A). And what was that bearing or thoughts in your mind?

Mr. Calilung. First of all *po, roon sa statement may nakausap na po,* it already took place before *pa iyong mangyari iyong meeting. And noong—*

Senator-Judge Cayetano (A). I'm not talking about *iyong may kinausap na para pumatay*. Ang *sinasabi ko, iyong sinabi niya na, "Pag pinatay ako."*

Mr. Calilung. Yes, Your Honor.

Senator-Judge Cayetano (A). How did that affect your investigation?

Mr. Calilung. There is a condition *na kapag pinatay siya*.

But as we can see, it's only applicable if there are only two parties. The statement makes a loophole wherein a third party can use that *na kapag namatay si VP, mae-execute niya iyong statement ni VP, na may nakausap na siya*, without the participation of the one mentioned—the President, the First Lady, and the Speaker of the House, Your Honor.

Senator-Judge Cayetano (A). That's fair. But what I'm saying is that, in your reports, did you characterize it as a conditional threat? *Kasi kung hindi naman siya pinatay*, the logical implication is that there's no threat against the— So, I'm not saying it's not illegal, immoral, to contract a killer, *ha*. I'm just trying to follow the logic *na 'pag—so kapag sinabi kong, "Pakukulong kita, Mr. Witness, 'pag nagsinungaling ka under oath,"* then it's actually not a threat, it's a legal—

I'm just telling you the law, *di ba? Pero, 'pag sinabi kong, "Pag hindi ka sumunod sa akin, aanuhin kita."*

That's my last question lang. So how did you characterize that, [if] it wasn't a conditional, in your mind because *may kinausap na?*

Mr. Calilung. Even with or without, Sir, it's still considered a threat as long as the First—

Senator-Judge Cayetano (A). I have no doubt there. I'm just asking: Is it a conditional threat?

Mr. Calilung. Based on our affidavit, Sir, I believe it's conditional, which—

Senator-Judge Cayetano (A). Based on your affidavit—

Mr. Calilung. Affidavit.

Senator-Judge Cayetano (A). But your initial assessment—*iyong personal mo* as an investigator. This is an investigation of the whole NBI, but *iyong personal mo*.

Mr. Calilung. The threat is absolute, Sir.

Senator-Judge Cayetano (A). Okay. Thank you, Mr. President. Thank you.

CLARIFICATORY QUESTIONS OF SENATOR-JUDGE PADILLA

Senator-Judge Padilla. *Opo. Nais ko lamang pong magtanong sa ating saksi.*

Ginoong Saksi, kanina po kasi, habang nagkakaroon ng pagdinig, ako po'y laging naiistorbo dahil sa tuwing may itatanong, mag-o-object, mag-o-object. Medyo magulo po, eh. Puwede po bang sagutin po ninyo ako?

Dahil noon pong February 5, ang sabi po rito ay insufficient po iyong—na hindi dapat makarating na sa preliminary investigation. Tama po ba? February 5 po iyon?

Mr. Calilung. *May [Iyong] Certification, Sir—yes, po.*

Senator-Judge Padilla. *Opo. Tapos, noong February 14, naging sufficient na for conduct of preliminary investigation.*

Nasagot po ba iyong pito na sinabi rito na para— ang sinasabi po kasi rito, noong February 5, merong pito na kulang.

Mr. Calilung. I believe so, Sir. That's why we have received a certification, Sir.

Senator-Judge Padilla. *Ayun. Kasi po, parang narinig ko kanina, hindi po naibigay iyong original copy noong isinagawang interview kay Vice President Sara Duterte. Iyong original po na kopya, kung sino po iyong nag-record, wala po kayong affidavit? Mayroon po ba kayong affidavit na nakuha ninyo?*

Mr. Calilung. Yes, Sir. *Ako po yung nag— nire-request po ng DOJ diyan is affidavit po noong nag-screen record, which is my affidavit, Your Honor.*

Senator-Judge Padilla. *Meron po siyang affidavit?*

Mr. Calilung. Ako, Sir. *Ako po iyong nag-execute, Sir. Kasi—*

Senator-Judge Padilla. *Hindi po iyong mismong tao?*

Mr. Calilung. Yes po. Ang hinihingi po kasi ni DOJ is *kung sino ang nag-screen record* through OBS, Sir.

Senator-Judge Padilla. Hmm. *Hindi po iyong mismong tao.*

Mr. Calilung. Yes, Your Honor.

Senator-Judge Padilla. *Kayo lang po iyong nag-affidavit.*

Mr. Calilung. Yes, Your Honor.

Senator-Judge Padilla. *Pero mayroon po kayong pagkakataon ba na nakausap ninyo iyong tao at nagbigay siya ng affidavit?*

Mr. Calilung. May I clarify, Your Honor, if *sinong tao* iyong tinutukoy ninyo?

Senator-Judge Padilla. *Iyong nag-record po.*

Mr. Calilung. *Ako po iyong nag-record through OBS, Sir.*

Senator-Judge Padilla. *Hindi po. Iyong mismong nag-record po kay Inday sa Vice President. Nakausap ninyo po ba? Iyong raw file po. Kasi napakahalaga po noon. Kasi roon po natin malalaman kung original ba o hindi.*

Mr. Calilung. The video itself, Sir, is publicly available. That's why I performed the recording, Sir.

Senator-Judge Padilla. *Opo. Pakisagot na lang po, Mahal na Saksi, kung nakuha ninyo po ba iyong original—iyong original, hindi po iyong galing sa Internet.*

Mr. Calilung. The original— no, Sir.

Senator-Judge Padilla. *Iyon lamang po. Maraming salamat po.*

CLARIFICATORY QUESTIONS OF SENATOR-JUDGE ZUBIRI

Senator-Judge Zubiri. *Maraming salamat to our Presiding Officer.*

Magandang hapon po, Mr. Witness.

Mr. Calilung. Good afternoon, Your Honor.

Senator-Judge Zubiri. *Gusto ko lang magtanong. Clarificatory questions lang po ito.*

Dito ba sa ating bansa—dahil tinatanong ko po ito sa inyo dahil kayo po ay investigating body. Sa ating bansa, mayroon bang specific law pagdating sa mga banta sa Pangulo, Pangalawang Pangulo, at kaniyang mga successors? Or iyan ba ay pasok lang sa grave threats, which is applied sa lahat, applicable sa lahat ng tao?

Mr. Calilung. Based on my personal knowledge, Sir, it's only on the grave threat, Your Honor.

Senator-Judge Zubiri. Which is applied to everyone, if I'm not mistaken, 'no? Kasi sa batas sa Amerika, sa Estados Unidos, mayroon pong tinatawag na number 18 under the United States Code, Section 871, there is a specific law na ipinagbabawal po itong mga threat to the to the President, Vice President, and its successors. May jail time po ito, at may fine na malaki.

As a matter of fact, dito sa panahon ni Pangulong Trump, marami na po silang kinasuhan at hinabla, at napasok sa kulungan dahil sa paglabag nitong batas na ito, at Secret Service po ang sumasagawa ng imbestigasyon.

Sa atin ba rito, ang NBI ba ang nabigyan po ng kapangyarihan para gawin itong imbestigasyon under your New NBI Code?

Mr. Calilung. Under our law, Sir, the New NBI Law, included *po iyong* investigation to the threats to the life of the President, the Vice President, the Speaker, the Senate President, and the Supreme Court, Sir.

Senator-Judge Zubiri. *So, klaro na nasa kapangyarihan ninyo kasi hindi puwede sa Presidential Security Group. Hindi katulad sa Estados Unidos, iyong Secret Service ang talagang nanghuhuli at nag-iimbestiga.*

Sa atin dito sa Pilipinas, ang NBI po ang nangunguna sa imbestigasyon. Tama po ba iyon o mali?

Mr. Calilung. It is within our law, Sir.

Senator-Judge Zubiri. Okay.

This is just food for thought, because not only are we Senator-Judges, we are also legislators. It may be time that we also craft a law that will be specific on threats made to the President, Vice President, and its successors, meaning the Senate President, the Speaker of the House, and the Supreme Court Chief Justice.

Sa Amerika kasi, sa batas po nila—and I'll just wrap up—to secure conviction, the defendant communicated a threat, the defendant understood and intended the statement as a true threat—hindi po niya sinabing “joke only” in the end; and, pangatlo, the defendant knowingly and willfully makes the threat.

So just food for thought as legislators as well.

So, *maraming salamat po*, Mr. Presiding Officer.

REMARKS OF THE PRESIDING OFFICER

Presiding Officer Escudero stated that the next order of business was the prosecution's redirect examination. He remarked that, depending on the duration of the redirect examination and any recross-examination, he intended to declare a recess after the counsel for the Respondent has delivered his allotted manifestation and before the presentation of the last witness for the day.

Attorney Ligutan clarified that, following the cross-examination by the Respondent's counsel, the prosecution decided to waive its redirect examination. The Presiding Officer acknowledged the manifestation and thanked the counsel.

The Presiding Officer then inquired whether the Respondent's counsel wished to begin utilizing his allotted time. In reply, Attorney Narvasa, counsel for the respondent, stated that he was yielding the Floor to his co-counsel, who would also conduct the cross-examination of the next witness.

MANIFESTATION OF ATTORNEY LIGUTAN

With respect to the documents presented to the witness during cross-examination, Attorney Ligutan explained that contrary to the earlier manifestation by the Respondent's counsel that all the documents shown to the witness had been premarked, the prosecution's review of the records revealed that the Articles of Partnership and the screenshots of certain websites had not been premarked. He accordingly requested the Respondent's counsel to clarify the matter for the record.

In response, Attorney Narvasa confirmed that the three documents referred to by the prosecution had not been premarked.

The Presiding Officer noted the manifestation and ordered that it be entered into the record.

APPEARANCE

Upon the direction of the Presiding Officer, Attorney Mark C. Vinluan entered his appearance as co-counsel for the respondent, Vice President Duterte.

REMARKS OF THE PRESIDING OFFICER

The Presiding Officer informed counsel for the respondent that, consistent with the time previously allotted to counsel for the prosecution to discuss whether the acts alleged in Article IV constituted an impeachable offense, the respondent's counsel would likewise be given the same allotted time of four minutes and 26 seconds.

INQUIRY OF SENATOR-JUDGE SOTTO

Senator-Judge Sotto inquired whether the witness would already be discharged.

In reply, the Presiding Officer stated that the witness would not yet be excused since he believed Senator-Judge Lacson still had questions for the witness.

CLARIFICATORY QUESTIONS OF SENATOR-JUDGE SOTTO

Senator-Judge Sotto. Well, a simple question.

The Presiding Officer. The gentleman may proceed.

Senator-Judge Sotto. Thank you very much.

You're familiar with the internet, of course.

Mr. Calilung. Yes, Your Honor.

Senator-Judge Sotto. Have you noticed that lately all the AI-generated videos have a caption saying "AI-generated"?

Senator-Judge Sotto. Yes, Your Honor.

Senator-Judge Sotto. *Kaya pag walang nakalagay na "AI-generated," siguradong hindi AI-generated?*

Mr. Calilung. Yes, Your Honor. Today, Your Honor.

Senator-Judge Sotto. Yes, lately, *ano?*

Mr. Calilung. Lately, Your Honor.

Senator-Judge Sotto. *Lahat nakalagay pag "AI-generated," nakalagay "AI-generated"; and Meta does not allow it, right?*

Mr. Calilung. They allowed it but there is a cap—there is an AI info part.

Senator-Judge Sotto. Correct, correct. There is a manifestation.

Mr. Calilung. Yes, Your Honor. It is explicitly mentioned as AI.

Senator-Judge Sotto. So you're aware of that?

Mr. Calilung. Yes, Your Honor.

Senator-Judge Sotto. Thank you. That's it.

CLARIFICATORY QUESTIONS OF SENATOR-JUDGE LACSON

The Presiding Officer. Senator Judge Lacson, you have—you likewise have two minutes, Sir. You may proceed.

Senator-Judge Lacson. Thank you, Mr. Presiding Officer, Mr. Senate President.

I have questions *para sa ating testigo*. Since you are presented here as an expert witness—*alam niyo, nag-consult din ako sa digital forensics experts para lang ma-convince ang sarili ko*. Now, my first question is: in this day and age of artificial intelligence, will you agree with me na it is almost impossible to distinguish an AI-generated video from the original? Almost impossible?

Mr. Calilung. Yes, Your Honor. It is hard, Your Honor.

Senator-Judge Lacson. Yeah, very hard, *'di ba?* Very difficult. So, *kasi ito*, impeachment trial *ano?* *Kasi sa Court, ginagamit talaga iyong expert testimony ng digital or computer forensics expert*. Now, you may or may not answer this question *kung classified, ano?* *Gusto ko lang malaman, ano ba iyong digital forensic tools na ginamit—ginagamit ninyo sa NBI?*

Mr. Calilung. Currently, I'm not familiar, but during the time *na nandoon po ako sa Digital Forensic Laboratory Division*, mayroon kaming EnCase forensic, Cellebrite, and Amped Authenticate, Sir.

Senator-Judge Lacson. Amped?

Mr. Calilung. Amped Authenticate, Sir.

Senator-Judge Lacson. *Ang balita ko, iyong Amped Authenticate, iyong Amped FIVE or AMP Authenticate?*

Mr. Calilung. Amped Authenticate, Sir.

Senator-Judge Lacson. *Ito iyong ginagamit ninyo? Ito, capable ito na magsagawa ng reverse image—photo or video, 'di ba?*

Mr. Calilung. Yes, Your Honor.

Senator-Judge Lacson. *Okay. Ito ba iyong ginamit mo?*

Mr. Calilung. For this part, Your Honor, the OBS only, Your Honor.

Senator-Judge Lacson. *Ba't hindi ninyo ginamit ito?*

Mr. Calilung. The duration is too large, Your Honor—the two hours. And the Amped Authenticate can only detect if there is an inconsistent FPS, Your Honor.

Senator-Judge Lacson. *Yeah. Kaya ko itinanong iyon dahil unang-una, maraming ano eh, para magamit sa korte, no? Likewise, sa Impeachment Court. May mga requirement, 'di ba? Sinabi mo kasi mayroon kayong open source, 'di ba?*

Mr. Calilung. Yes, Your Honor.

Senator-Judge Lacson. *Ang pinaka-importante ay iyong chain of custody. Of course, iyong provenance?*

Mr. Calilung. Yes, Your Honor.

Senator-Judge Lacson. *Iyong original na pinanggalingan?*

Mr. Calilung. Yes, Your Honor.

Senator-Judge Lacson. *Ang sabi mo, pinanggalingan lang—Facebook?*

Mr. Calilung. The Facebook was captured, Your Honor.

Senator-Judge Lacson. *So, hindi iyon ang original, 'di ba?*

Mr. Calilung. The screen recording is the original itself as to my authentication, Sir.

Senator-Judge Lacson. *Yeah, and you can attest sa authenticity noong video?*

Mr. Calilung. Yes, Your Honor.

Senator-Judge Lacson. *In spite of not being—or not having originated from the original?*

Mr. Calilung. Yes, Your Honor. I compared the recorded with the original and ensured that the contents are identical. Your Honor.

Senator-Judge Lacson. *Kasi nabanggit mo rin, ginamit mo iyong manual comparison simultaneously ng dalawang videos.*

Mr. Calilung. Yes, Your Honor.

Senator-Judge Lacson. *Pero again, I will insist na talagang hindi reliable iyong manual. Ito iyong sinabi sa akin noong digital forensics expert na nakausap ko. Ang pinaka mas importante, makuha mo iyong original copy, iyon nga, iyong provenance, 'di ba? Para talagang—tapos masundan mo iyong—sa analysis, gagamitan mo ng tools para malaman mo na talagang authentic iyong video.*

Of course, I'm not here to question the authenticity. I just want to be assured *dahil, sabi ko nga kanina, pagka sa artificial intelligence, napakahirap talaga.* Almost impossible to distinguish it from the original video or *iyong* source.

Mr. Calilung. Yes, Your Honor.

Senator-Judge Lacson. And you're competent enough to—*kasi ginagamit iyong forensic tools o forensics tools, at iyong competence mo through your training?*

Mr. Calilung. And experience, Your Honor.

Senator-Judge Lacson. And experience. *Kasi sabi mo nga, you've been with the NBI since 2021, 'di ba?*

Mr. Calilung. Yes, Your Honor.

Senator-Judge Lacson. And since then, you have appeared in some 20—

Mr. Calilung. At least 30, Your Honor.

Senator-Judge Lacson. 30?

Mr. Calilung. Yes, Your Honor.

Senator-Judge Lacson. Thirty court hearings.

Mr. Calilung. Yes, Your Honor.

Senator-Judge Lacson. So, thank you, Your Honor. Thank you, Mr. Presiding Officer.

Mr. Calilung. Thank you, Your Honor.

The Presiding Officer. Thank you, Senator-Judge Lacson.

MANIFESTATION OF SENATOR-JUDGE CAYETANO (A)

Senator-Judge Cayetano (A) sought clarification from the Presiding Officer regarding the witness's earlier testimony on his qualifications after he had been asked whether he was testifying as an expert witness. He recalled that the witness had stated that he was a competent witness rather than an expert witness and noted that there was a distinction between the two. The Presiding Officer concurred with the observation.

Senator-Judge Cayetano (A) further stated that the distinction could have a bearing on the issue of whether an artificial intelligence-generated video could be produced without the use of artificial intelligence, noting that such matter would ordinarily require the testimony of an expert witness. He clarified, however, that his observation should not be construed as questioning the witness's competence to testify on the matters within his personal knowledge.

QUESTIONS OF SENATOR-JUDGE CAYETANO (A)

Senator-Judge Cayetano (A). Second point, I'd just like to clarify for the record. My understanding of watching the video is that it was on StreamYard, then a link was shared sa Facebook...

Mr. Calilung. Yes, Your Honor.

Senator-Judge Cayetano (A). So, if that is the case, Mr. Presiding Officer, the original video is with StreamYard, not with Facebook, or are both originals?

Mr. Calilung. It is Zoom, Your Honor.

Senator-Judge Cayetano (A). Zoom?

Mr. Calilung. Yes, Your Honor.

Senator-Judge Cayetano (A). I was informed StreamYard. Just for the record, so that later on, when we review everything, someone testified to it.

The Presiding Officer. Duly noted and entered into the *Record*.

Senator-Judge Cayetano (A). Thank you.

REQUEST OF SENATOR-JUDGE PADILLA

Senator-Judge Padilla. *Ginoong Tagapamahala ng Hukumang ito, nais ko lamang po sana hingin ang mga credential ng ating saksi, kung papaano po lahat ng kaniyang certification, upang mapatunayan po natin lahat.*

The Presiding Officer. The witness testified to it earlier but kindly respond to the question of Senator-Judge Padilla. Mr. witness.

Mr. Calilung. I have here, Sir, my certifications during the time of my investigation, Your Honor.

The Presiding Officer. *Mahaba ba?*

Mr. Calilung. I can read, Your Honor.

The Presiding Officer. *Mahaba ba? Hindi?*

Senator-Judge Padilla. *Ibigay na lang po siguro sa atin.*

The Presiding Officer. Kindly just submit it to us. Yes, please.

Senator-Judge Padilla. *Opo, submit na lang po.*

Mr. Calilung. Yes, Your Honor.

Thank you, Your Honor.

The Presiding Officer. If that is okay with Senator-Judge Padilla.

Senator-Judge Padilla. *Opo.*

The Presiding Officer. Thank you, Sir.

Mr. Calilung, you are excused, Sir. Thank you for your time and cooperation with the Impeachment Court.

Mr. Calilung. Thank you, Your Honor.

Thereafter, the Presiding Officer discharged the witness.

STATEMENT OF THE RESPONDENT'S COUNSEL

Pursuant to the agreement of the parties and the earlier order of the Presiding Officer, respondent's counsel, Atty. Vinluan, was afforded the same period of four minutes and 26 seconds previously granted to the prosecution to address the issue of whether the acts alleged in Article IV constitute an impeachable offense, as follows:

"In the discourse yesterday, talking about VP Sara's statements during the November 23, 2024 press con, Senator-Judge Risa Hontiveros stated, and I quote:

"None of these statements are proof that the Vice President actually contracted an assassin or hired one."

She is absolutely right.

She then asked the question: "Why are these acts impeachable?" To this question, the prosecution responded: "We understand that these statements may not actually 100% prove that she, in fact, contracted an assassin."

Hence, the prosecution admitted that the video does not prove any fact other than its existence. In simple words, there is no proof of any contracting of an assassin. The prosecution's admission before this Honorable Court made their respondents' position clear. The prosecution has no other competent evidence to prove that VP Sara contracted an assassin.

Ang testimonya ni Calilung, gaya ng iba pang ebidensya kuno ng prosecution ay hindi sapat para patunayan ang paratang na ito. Trying to prove the stretched narrative using a hodgepodge of materials is a waste of this Honorable Court's time and the Filipino people's money. *Si VP Sara na mismo ang nagsabi na hindi assassin ang kinausap niya.* This term only came from people who took her statements out of their proper context and tried to exaggerate them for what they really meant.

The truth of the matter is this: she and her family were threatened. And while her response was unconventional, it was justified. What triggered her response was a question about Operation Romanov, which is the plot to eliminate VP Sara and her entire family.

The NBI's own records prove this. In the minutes of the meeting of Dempsey Reyes' interview, he said, and I quote: "*May press con kasi earlier than that. Sabi lang niya, gusto siyang patayin daw*—according to her—*ni Speaker.* That was during a press conference the day before November 2022."

During the virtual press con, Princess Maui mentioned Operation Romanov again and even warned her about her safety. Reyes talked about it, Princess Maui reiterated it, but the NBI gaslighted it. When VP Sara uttered those words, she was not responding as Sara Duterte, the Vice President, but Sara Duterte—the wife, mother, daughter, and sister who only sought to protect her own and her family members' lives. Operation Romanov is in place and the threat against their lives is real.

VP Sara became the target of unauthorized intelligence and surveillance operations by government operatives that exposed her family to high-level risk and security threats thereby causing intense trauma and uncontrollable fear. Her homes in Davao and Manila were profiled and this is proven by classified casing reports. Her trusted security personnel were removed. Her schedule of official functions like the one in Naga was leaked by intelligence agents and her security was heavily compromised.

In sum, the prosecution was right in using the term "culmination." But the prosecution's interpretation is wrong. Rather, when VP Sara left the Administration, she suffered various forms of threats and harassment for many months from the powers that be and the culmination was her statement on that fateful early morning in November 2024. She didn't commit an impeachable offense. She drew the line in the sand and said, "Enough is enough." That is the meaning and that is the context.

Finally, as to the alleged grave threats and inciting to sedition, these are defined by the Revised Penal Code and are punishable by *prisión correccional*. Thus, these fall under the jurisdiction of the MTC or first level courts. These charges are not other high crimes as contemplated by the Constitution as grounds for impeachment and are therefore not impeachable.

After all, VP Sara was fighting two important battles that day: one, against the threat to her family's life; and another, against the life of the ordinary Filipino, constantly suffocated by the immense weight of corruption, which she talked about during the press con. She never incited sedition. She merely echoed the voice of ordinary Filipinos.

Her message that day only reflected what was already in their hearts and minds. There was no betrayal of public trust. She actually upheld the people's trust as she spoke for and behalf of the people.

Thank you, Your Honor."

MANIFESTATION OF SENATOR-JUDGE AQUINO

Senator-Judge Aquino appealed to both parties to conduct the examination of succeeding witnesses in a more direct and efficient manner, observing that the testimony of the first witness had taken approximately nine hours to complete. While recognizing that each party was entitled to pursue its own litigation strategy, he urged counsel for both parties to allow the witnesses' testimonies and documentary evidence to be presented more fully so that the issues could be better understood by the Senator-Judges and the public.

He emphasized that his remarks were intended as a request rather than an order and expressed hope that the proceedings would remain focused on the presentation of facts and evidence to facilitate a fair and informed resolution of the case.

MANIFESTATION OF THE PROSECUTION

The prosecution informed the Court that Agent Calilung would be its final witness for the day and that its next witness, Atty. Jeremy Lotoc, would be presented at the next hearing.

Upon clarification by the prosecution panel, the schedule of witnesses for the following week was identified as follows: Atty. Lotoc on Monday, Atty. Zuleika Lopez on Tuesday, and Capt. Belinda Bello on Wednesday, while the presentation of NBI Director Melvin Matibag would depend on the progress of the proceedings.

Accordingly, Presiding Officer Escudero ordered the issuance of subpoenas to Attorney Lotoc and NBI Director Matibag.

ORDERS OF THE PRESIDING OFFICER

Presiding Officer Escudero first informed the Court that the box from the Bureau of Internal Revenue (BIR), which had previously been ordered returned, had been delivered to the BIR sealed, unopened, and duly acknowledged as received. Upon learning that the prosecution filed a motion for the issuance of a subpoena *duces tecum* and *ad testificandum* to the BIR, he instructed the parties to verify that Respondent's counsel had been furnished a copy of the motion to facilitate its consideration.

For ensure consistent treatment of the proposed subpoena for bank records and the request for the production of the bank records of the Vice President and her spouse, Atty. Mans Carpio, Presiding Officer Escudero directed both parties to submit their respective memoranda on the proposed BIR subpoena by Monday.

He likewise scheduled oral arguments on both the BIR records and bank records issues for Wednesday, allotting each party ten (10) minutes for its principal argument and an additional three (3) minutes for rebuttal, after which the Court would resolve the matter.

He further clarified that no subpoena would be issued to NBI Director Matibag for the following week's hearings. Upon the prosecution's manifestation, he instead directed the issuance of a subpoena to Atty. Zuleika Lopez requiring her to appear on July 13 and 14, noting that the July 15 hearing would be devoted to the scheduled oral arguments on the subpoena for the BIR and bank documents.



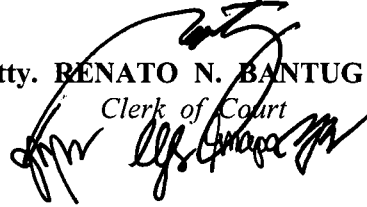
ADJOURNMENT OF THE IMPEACHMENT TRIAL

The Presiding Officer declared the impeachment trial adjourned until two o'clock in the afternoon of Monday, July 13, 2026.

It was 4:57 p.m.

I hereby certify to the correctness of the foregoing.

Atty. BENATO N. BANTUG JR.
Clerk of Court

A large, stylized handwritten signature in black ink, likely belonging to Atty. Benato N. Bantug Jr., is written over the printed name and title.

Approved on July 13, 2026